From: Anderson, Shelley
To: BURTCH, CHRISTOPHER
Subject: Re: USA Swimming
Date: Friday, October 2, 2026 9:24:15 AM
Attachments: image.png
image.png

Thank you, Chris!

Shelley Anderson
Complaint Resolution Coordinator
469.633.6390
andersonsh@friscoisd.org
FISD Administration

From: BURTCH, CHRISTOPHER <burtchc@friscoisd.org>
Sent: Thursday, October 1, 2026 4:14 PM
To: Anderson, Shelley <andersonsh@friscoisd.org>
Subject: USA Swimming

To Whom it May Concern,

The Frisco ISD Athletic Directors nor the Frisco ISD natatorium staff had access to the USA Swimming Code of Conduct complaint submission that was filed on June 9, 2026, by Stephen Jordan.

USA Swimming is a national organization that oversees and governs club swim teams.

Sincerely -

Chris Burtch
Athletic Director
FISD - Home of Champions
41 Team State Championships
47 Team State Runner-Up Finishes
45 Team State Semi-Finalist/3rd
469.633.6129
burtchc@friscoisd.org
Frisco ISD Athletic Office
7210 Stadium Lane
Frisco, Texas 75033

EXHIBIT C

Melissa Howard
FISD Swim/Dive Coordinator

Matt Franks
Assistant Manager, Head Coach

Daiki Sato
Head Age Group Coach

Justin Bilgri
Jr. Program Coordinator

Colleen Cleveland
Natatorium Receptionist

7210 Stadium Lane
Frisco, Texas 75033
(469) 633-6170 Phone

July 7, 2026

To: Stephen Jordan
Email: srjordan@gmail.com

Summary of Investigation

Iron Horse Aquatics Parent Code of Conduct Violation

Incident Date: Friday, June 5, 2026
Approximate Time: 6:15 p.m. – 6:40 p.m.
Location: NWAA Memorial Classic Swim Meet, Bentonville, Arkansas

Allegations

During the NWAA Memorial Classic Swim Meet held on June 5, 2026, Iron Horse Aquatics coaching staff were notified of allegations that Iron Horse Aquatics parent Stephen Jordan engaged in conduct that violated both meet policies and the Iron Horse Aquatics Parent Code of Conduct.

Specifically, it was alleged that Mr. Jordan entered the pool deck without authorization, despite meet rules expressly prohibiting spectator access to the competition deck. This conduct constitutes an alleged violation of Iron Horse Aquatics Parent Code of Conduct Section 4.C.

It was further alleged that, after entering the pool deck, Mr. Jordan confronted meet officials and event volunteers in an aggressive and intimidating manner. Witnesses reported that he repeatedly made statements to the effect that "a major mistake had been made" and that officials "better fix it or [he] would come after them." Multiple witnesses described Mr. Jordan's tone, body language, and demeanor as threatening.

Additionally, it was alleged that following his child's race, Mr. Jordan loudly yelled at his child while remaining within the restricted competition area, constituting an alleged violation of Iron Horse Aquatics Parent Code of Conduct Section 1.

Iron Horse Head Age Group Coach was notified of the incident and communicated with Mr. Jordan through SportsYou regarding the reported conduct. He notified his supervisors, Iron Horse Head Coach and FISD Swim/Dive Coordinator. To ensure a complete understanding of the incident, he requested documentation and statements from NWAA meet officials.

On June 9, 2026, Iron Horse Aquatics received a written statement from the NWAA Board President and Administrative Official. The information contained within that statement alleged conduct that, if substantiated, would constitute violations of Iron Horse Aquatics Parent Code of Conduct Sections 2, 3, 4, and 5, as well as USA Swimming Code of Conduct Section 304.3.10.

Mr. Jordan was notified that an administrative investigation would be conducted regarding the reported conduct. District personnel offered him an opportunity to participate in an in-person or telephone meeting. Mr. Jordan declined that opportunity and elected to provide a written statement via email.

Investigation and Findings

As part of the investigation, Mr. Jordan's written statement was reviewed along with statements obtained from the following individuals:

Iron Horse Aquatics Personnel

- Head Age Group Coach
- Associate Head Age Group Coach/Jr. Program Coordinator
- Part-time assistant coach

NWAA Personnel, Officials, Volunteers, and Witnesses

- Meet Administrative Official
- Safety Marshal
- Hospitality Volunteer
- Head Coach, NWAA
- Volunteer/Witness
- Volunteer/Witness

The statements obtained during the investigation were generally consistent regarding the sequence of events.

According to witness statements and their own statement, the Safety Marshal was the first official approached by Mr. Jordan regarding his concerns. They instructed him to remain off the pool deck while they located an individual who could assist him. Witnesses reported that Mr. Jordan did not comply with this instruction and instead followed them onto the restricted competition deck.

The Safety Marshal then requested assistance from a hospitality volunteer before returning to her assigned post. Upon realizing Mr. Jordan had continued onto the pool deck, they again instructed Mr. Jordan to leave the restricted area. The Safety Marshal and other witnesses stated that Mr. Jordan again failed to comply.

Following the completion of his son's race, witnesses reported that Mr. Jordan proceeded farther into the restricted swimmer area near the timers and loudly directed comments toward his son. Multiple witnesses indicated that this occurred beyond the limited distance described in Mr. Jordan's written statement.

The hospitality volunteer intervened and again instructed Mr. Jordan to leave the competition deck. Witness statements consistently report that during this interaction Mr. Jordan directed hostile comments toward the hospitality volunteer, stating that the situation was their fault and that if they did not correct it, he would "come after them." Several witnesses described the interaction as aggressive and intimidating.

The Meet Administrative Official reported observing the interaction from another area of the deck and began moving toward the incident after observing Mr. Jordan's escalating behavior. By the time they arrived, he had exited the competition deck.

The accounts provided by the identified witnesses were substantially consistent regarding Mr. Jordan's unauthorized presence on the competition deck, repeated failure to comply with requests to leave the restricted area, and his confrontational interactions with meet personnel and his son.

Conclusion

After reviewing all available information, including Mr. Jordan's written statement and the statements provided by Iron Horse Aquatics personnel, NWAA officials, volunteers, and witnesses, the investigation concludes that the evidence supports a finding that the parent violated the Iron Horse Aquatics Parent Code of Conduct.

Specifically, the investigation substantiated violations of Parent Code of Conduct Sections 1, 2, 3, 4, and 5, as well as USA Swimming Code of Conduct Section 304.3.10.

Records indicate that Mr. Jordan acknowledged receipt of the Iron Horse Aquatics Parent Code of Conduct by electronic agreement on August 9, 2024.

Administrative Action

Based upon the findings of this investigation, Mr. Stephen Jordan is suspended from attendance at all Iron Horse Aquatics practices, competitions, meetings, and other team-sponsored events, effective immediately through December 31, 2026.

During the suspension period, Mr. Jordan shall not be present at any Iron Horse Aquatics event, regardless of location, or in any area designated for Iron Horse Aquatics activities. This includes events outside of Frisco.

Any unauthorized presence at an Iron Horse Aquatics event during the suspension period may constitute criminal trespass if Mr. Jordan remains on the premises after receiving notice that entry is prohibited or refuses a lawful request to leave. In such circumstances, district personnel or event officials may request assistance from law enforcement, and enforcement actions will be handled in accordance with applicable law and district policy.

Timeline – S. Jordan/NWAA Memorial Classic Swim Meet Incident
Iron Horse Parent Code of Conduct Violation
Date of incident: Friday, June 5, 2026
Time of incident: Between approximately 6:15pm-6:40pm

Events/Investigation

Friday, June 5, 2026:

Iron Horse coach Daiki Sato noticed swimmer [redacted] Jordan had missed his event because another athlete had swum in [redacted] lane. Coach Sato went to meet officials to express his concern that [redacted] didn't get to swim and then made sure he was given an opportunity to compete. [redacted] was placed into another heat and lane in a different division and was able to race.

After this, Coach Sato was approached by the meet ref ([redacted]) and administrative official ([redacted]) to notify him of concerning behavior from an Iron Horse parent that did not follow meet protocol and demonstrated aggressive behavior toward parent volunteers.

Coach Sato notified his supervisor – Melissa Howard in which he was instructed to inform the parent that his behavior was unacceptable but to ensure other coaches were included. He sent a SportsYou message to Stephen Jordan and included Matt Franks and Melissa Howard on this conversation.

Coaches Amber Craver and Justin Bilgri were also present and provided statements based on their involvement.

See Evidence A – SportsYou screenshots from June 5, 2026

See Evidence B – Statement from Daiki Sato (provided on June 10, 2026)

See Evidence C – Statement from Justin Bilgri (provided on June 10, 2026)

See Evidence D - Statement from Amber Craver (provided on June 10, 2026)

Monday, June 8, 2026:

Coach Howard informed the athletic department personnel that there had been an incident with a parent at the meet over the weekend and that the Iron Horse staff would be looking into the behavior further as it was a possible violation of the Iron Horse Parent Code of Conduct.

Coach Sato asked the NWAA to send a statement regarding what was witnessed by them and their volunteers.

Tuesday, June 9, 2026:

[redacted] email Coach Sato her account of the events that took place.

See Evidence E – Statement from [redacted]

This information was sent to athletic department personnel to see if the information provided escalated the situation and the need for an investigation. It was agreed that it did so. Coach Matt Franks emailed Stephen Jordan to inform him that we would be investigating his behavior and asked for a time to speak with him to get his statement as to his involvement.

See Evidence F – Email from Coach Franks sent at 4:35pm on June 9, 2026, and Mr. Jordan's reply sent at 7:35pm in which he expressed interest in only communicating via writing in addition to other inquiries.

Wednesday, June 10, 2026:

Upon receipt of Mr. Jordan's request, Coach Howard sought guidance from the athletic department to follow proper procedures for the investigation.

Monday, June 15, 2026:

The athletic department confirmed that if the investigation proceeded via written contact only that Mr. Jordan's statement he had already provided was what he could contribute but to inform him that we would prefer to meet in person or over the phone to gain the most accurate understanding of the circumstances. Coach Franks emailed Mr. Jordan to inform him of this at 5:52pm. Mr. Jordan sent his response confirming he wanted to continue with the email only statement and had other demands at 6:21pm.

See Evidence G – Email from Coach Franks and response from Mr. Jordan

Tuesday, June 16, 2026:

Coach Franks and Coach Howard placed a phone call to [redacted] to gain further clarification on the information provided in her statement and to see if there were additional witnesses that should be contacted. The phone call was not recorded. She was asked if she personally witnessed the situation to which she said yes, she was across the deck from the incident and could see Mr. Jordan's behavior was aggressive toward the volunteers and began making her way to intervene. She did not witness any physical contact with the volunteers, and he was off the deck by the time she arrived. See notes from phone calls.

Victims and other witnesses provided by [redacted]

[redacted] who interacted with Mr. Jordan.

See Evidence H – Notes from phone call with [redacted]

See Evidence I – Email from [redacted] with contact information for additional witnesses

A phone call was also made to [redacted] He was only informed after the fact about the incident. He was asked if there were any security cameras that could be viewed and he said he would reach out to the aquatic director to inquire about this. The aquatic director informed us they could not provide that footage, but the Bentonville PD could. Upon calling the number provided we were informed that the PD does not have access to the cameras.

See Evidence J – Notes from phone call with [redacted] Officer Nunez

See Evidence K – Email exchange between [redacted] and Aquatics Director

A phone call was placed to [redacted] at 1:58pm. Initially a voicemail was left but she returned the call quickly. Phone call was recorded with her permission.

See Evidence L – Transcript of phone call with [redacted]

[redacted] was out of the country at the time, therefore a phone call did not take place, but she provided her statement via email and provided additional witnesses to the incident that overheard Mr. Jordan's verbal assault and threats.

See Evidence M – Email exchange with [redacted]

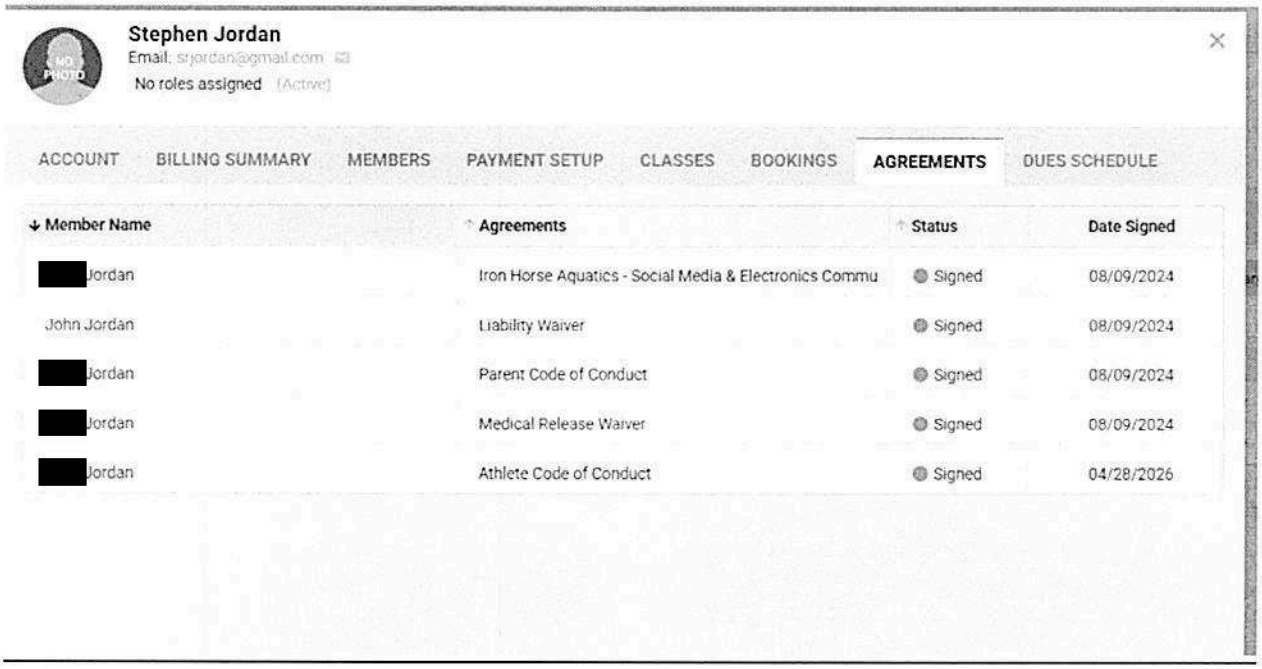
Tuesday, June 17, 2026:

[redacted] provided contact information for additional witnesses to confirm the aggressive tone and context of her interaction with Mr. Jordan.

[redacted]

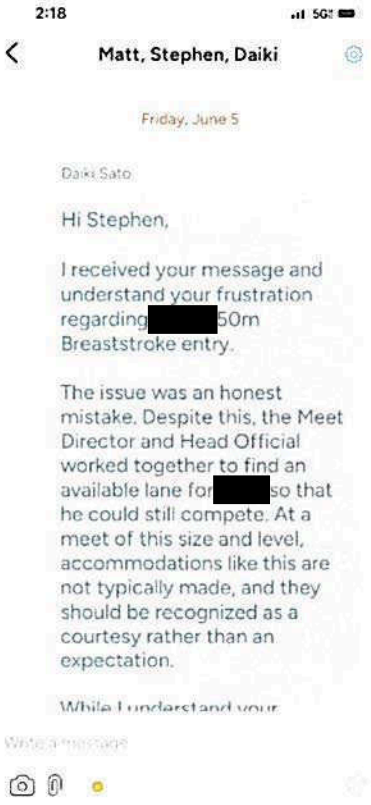
Coach Howard placed a phone call to both witnesses and recorded the conversation with their permission.

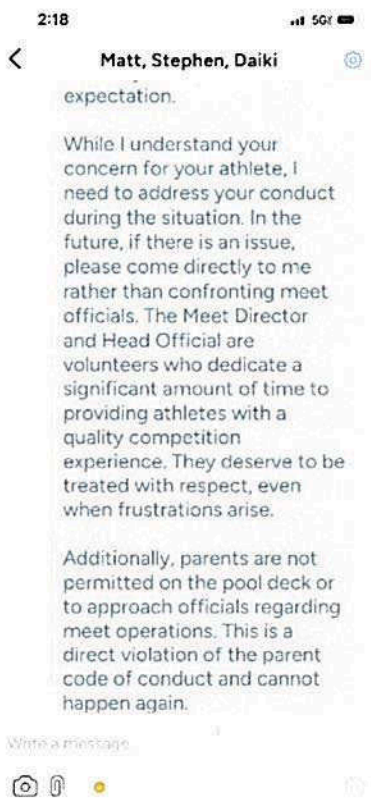
See Evidence N – Transcript of phone call with [redacted]
See Evidence O – Transcript of phone call with [redacted]

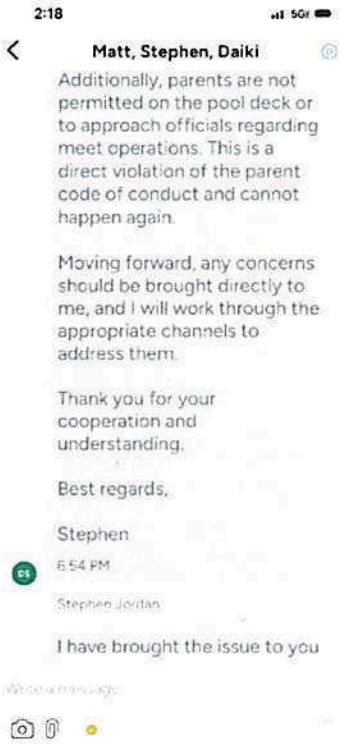

Stephen Jordan
Email: srjordan@gmail.com
No roles assigned (Active)
ACCOUNT
BILLING SUMMARY
MEMBERS
PAYMENT SETUP
CLASSES
BOOKINGS
AGREEMENTS
DUES SCHEDULE
Member Name
Agreements
Status
Date Signed
[redacted]Jordan
Iron Horse Aquatics - Social Media & Electronics Commu
Signed
08/09/2024
John Jordan
Liability Waiver
Signed
08/09/2024
[redacted]Jordan
Parent Code of Conduct
Signed
08/09/2024
[redacted]Jordan
Medical Release Waiver
Signed
08/09/2024
[redacted]Jordan
Athlete Code of Conduct
Signed
04/28/2026

EVIDENCE A

Evidence A – SportsYou Screenshots; June 5th, 2026

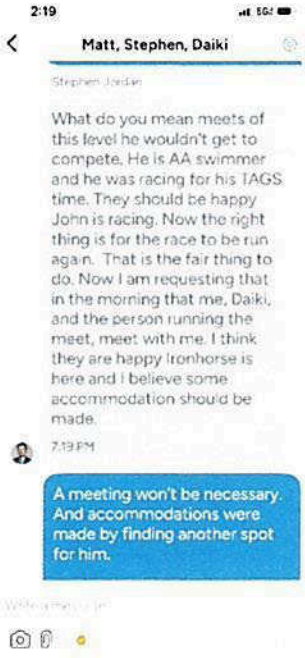


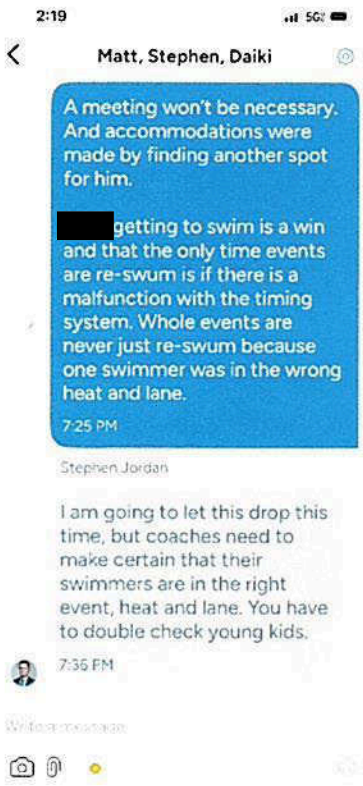











2:19
Matt, Stephen, Daiki
A meeting won't be necessary. And accommodations were made by finding another spot for him.
[redacted] getting to swim is a win and that the only time events are re-swum is if there is a malfunction with the timing system. Whole events are never just re-swum because one swimmer was in the wrong heat and lane.
7:25 PM
Stephen Jordan
I am going to let this drop this time, but coaches need to make certain that their swimmers are in the right event, heat and lane. You have to double check young kids.
7:36 PM

EVIDENCE B

INCIDENT REPORT

Date of Incident: June 5, 2026 approximately 6:15p-6:40p
Event: 2026 NWAA Memorial Classic
Session: Finals
Submitted By: Daiki Sato, Head Age Group Coach, Iron Horse Aquatics

Summary of Incident

During the finals session of the 2026 NWAA Memorial Classic on Friday, June 5, 2026, swimmer [redacted] Jordan missed his scheduled race in the 11–12 Boys 50M Breaststroke final after another swimmer mistakenly entered and competed in his assigned lane.

Upon noticing the issue, I immediately approached [redacted] to discuss the situation. My primary concern was ensuring that [redacted] Jordan would not be disqualified from further participation in the meet, as a similar situation had reportedly occurred with another swimmer in previous years. [redacted] worked with meet administration and accommodated [redacted] by placing him in an open heat with 15&O athletes, allowing him an opportunity to swim the event. The meet officials were very accommodating in providing [redacted] with another opportunity to compete.

Parent Conduct Concerns

After resolving the racing issue, I returned to the coaches' area to continue observing the meet. At that time, [redacted] and [redacted] approached me regarding an interaction involving [redacted] Jordan's father, Stephen Jordan.

According to both officials, Mr. Jordan entered the competition deck without authorization, despite deck access being restricted to credentialed personnel. They reported that he was visibly upset, was rude toward volunteers, and was yelling while seeking answers regarding his son's missed race. They further indicated that threatening comments were made during the interaction.

Shortly thereafter, I checked my phone and observed a missed message from Mr. Jordan.

Follow-Up Actions

Upon learning of the reported incident, I immediately contacted Aquatics Coordinator Melissa Howard to review the situation and ensure that all communications and actions remained consistent with district expectations and procedures.

Ms. Howard instructed me to respond to Mr. Jordan through a group message that included herself, Matt Franks, and me. In that communication, we explained the accommodation that had been made to allow [redacted] Jordan to swim. Mr. Jordan disagreed with our assessment of the

resolution but eventually ended the discussion. Copies of the SportsYou message exchange are available and can be provided if needed.

Following the communication, I contacted Coach Matt Franks to review the situation and discuss appropriate next steps. I was advised to continue following district policy and procedures.

Documentation

Following these events, I spoke with the officials and volunteers who had direct interactions with Mr. Jordan and requested written statements regarding the incident for documentation purposes.

Conclusion

Based on this incident, combined with previous interactions and communication patterns involving Mr. Jordan, there appears to be an ongoing pattern of aggressive and confrontational behavior toward coaches, officials, and volunteers. The reported conduct at this meet—including unauthorized deck access, hostile interactions with volunteers and officials, and alleged threatening comments—created a disruptive environment and required intervention by meet officials and team staff.

Based on the information provided by meet officials, volunteers, and staff members, this conduct appears to be inconsistent with the expectations established by both the Iron Horse Aquatics Parent Code of Conduct and USA Swimming Code of Conduct Section 304.3.10, which prohibits threatening language or conduct directed toward meet officials in connection with decisions made during a USA Swimming-sanctioned competition.

Such behavior negatively impacts the meet environment, places unnecessary strain on volunteers and officials, and undermines the standards of sportsmanship and respect expected of all participants and spectators. For these reasons, I believe it is important that this incident be formally documented and reviewed in accordance with Iron Horse Aquatics, district, and USA Swimming policies and procedures.

Please let me know if any additional information, witness statements, or supporting documentation is needed.

Submitted by:

Daiki Sato
Head Age Group Coach
Iron Horse Aquatics

EVIDENCE C

Outlook

Stephen Jordan incident report

From BILGRI, JUSTIN <bilgrij@friscoisd.org>
Date Wed 6/10/2026 11:10 AM
To HOWARD, MELISSA <howardme@friscoisd.org>

Statement on incident involving Stephen Jordan

While we were watching racing on Friday 5th evening finals, [redacted] Jordan missed his event. After the race began, I saw him standing behind the blocks and then start to wander to the side/corner of the pool on the far side which is also where parents could watch from. At that point I noticed Stephen Jordan grabbing his son forcefully behind the armpit area attempting to push him back over behind the blocks while also aggressively motioning for him to get back over there. I could not hear what he said, but it was clear that Mr. Jordan wanted him to go figure out how to get into the race after he missed the event.

Coach Daiki began working immediately with the meet officials to see if we could get him in the event. A few races passed by, and then a meet official came over to us and said they had got him worked in to a later heat. Additionally, the meet official stated that Mr. Jordan had been causing some issues with the timers. That he pushed passed the secure area and wanted to speak with someone in charge. I was told it made a few volunteers feel uncomfortable. I did not see any of that take place, I was told by the meet official. In the end, [redacted] ended up swimming his event and I believe swam for a best time.

There was some communication through our messaging app during Friday night's session about the race to Coach Daiki and that is the last thing I recall on this issue.

FRISCO ISD
BRUCE EUBANKS NATATORIUM
IRON HORSE AQUATICS

Justin A Bilgri
Associate Head Age Group Coach
Junior Program Coordinator

469.633.6175
bilgrij@friscoisd.org
FISD Swim Center
7210 Stadium Lane
Frisco, TX 75034

EVIDENCE D

Outlook

Arkansas meet

From [redacted]
Date Wed 6/10/2026 2:17 PM
To FRANKS, MATTHEW <franksma@friscoisd.org>; HOWARD, MELISSA <howardme@friscoisd.org>

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Arkansas meet with Iron Horse.

I would like to address the incident that happened at the Arkansas meet.

It started with another swimmer swimming in the wrong heat and lane for the 50 breast. The timers were at the other end of the pool of the swimmers and the swimmers had to get to the lanes on their own. Instead of [redacted] saying something to the swimmer and swimming in his heat, he stood behind the blocks and looked around and did not know what to do. We saw it happen, so Daiki took off to talk to the official to see if we could get [redacted] in another heat.

[redacted] and myself watched [redacted] dad take [redacted] arm and push him and pull him behind the blocks.

[redacted] then came over to talk to us and we calmed him down as we were watching the other swimmers. Daiki then came over to tell [redacted] what heat and lane he needed to go to bc the meet official worked him in to get his 50 breast in.

We lost track of [redacted] dad during this time. I had started walking towards the official tent to get the 10 and under girls ready for their next event but the head meet ops came up to me and said we have a huge problem with a parent on your team attacking our timers. I asked if it was an older gentleman and she said yes and assumed we were already having trouble with this parent as even their photographer saw what was happening and came over to get the head official.

I immediately went back to get Daiki and he went to talk to head of meet ops.

After thinking about the situation I went over to head of meet ops and asked her how he got on deck. They had a barrier that the parents could not go through with a parent volunteer checking to make sure the parents could be on deck. She said the woman working there tried to stop him, but he would not listen and pushed through her and came on deck.

According to meet ops he was in the timers faces and yelling at them about how great his son was and how he was going to win and they needed to get his time and do the right thing.

I made it a point to apologize to head official and head meet ops and thank for handling the situation and letting them know that due to being an ISD run program and not a non profit or private club, that

we have a lot less control in dealing with difficult parents and apologized for the way he treated everyone on deck.

As far as his actual actions with the timers and security I did not see them directly but was first responder when approached by meet ops. I did suggest reaching out to the host team to see if the photographer got any pictures of his actions as she was one that reported him as well.

Thankyou. [redacted]

EVIDENCE E

NWAA SHARKS
NORTHWEST ARKANSAS AQUATICS

June 9, 2026

To Whom it May Concern:

My name is [redacted] and I am the [redacted] for the NWAA Sharks in Bentonville, Arkansas. I also served as the [redacted] for our swim meet held June 5–7, 2026. I am writing to inform you of an incident involving the father of Iron Horse Aquatics swimmer [redacted] Jordan that occurred during the Friday evening finals session.

During the session, another swimmer mistakenly entered [redacted] lane, causing him to miss his scheduled event. After being made aware of the situation, the [redacted] and I determined that the most appropriate correction was to place [redacted] into a later heat so that he would still be able to compete. [redacted] subsequently raced the event and swam a personal best.

While [redacted] was in the water, one of our parent volunteers informed me that his father wanted to speak with an official regarding the incident. I explained that [redacted] was currently racing and that we had already corrected the mistake. The volunteer relayed this information to him.

The following account is based on what I personally observed from across the pool deck, along with details provided by the volunteers directly involved in the interaction.

Mr. Jordan pushed past our Meet Marshal despite being reminded multiple times that the pool deck was closed to parents. By that time, [redacted] had completed his race. Mr. Jordan then began yelling at his son in an area occupied by volunteers and swimmers. When reminded again that parents were not permitted in the swimmers' area, he became increasingly upset and began yelling at one of our volunteers, stating that a major mistake had been made by meet personnel.

The volunteer explained that the issue had already been addressed and that [redacted] had been given the opportunity to swim the event. She again directed him to leave the closed pool deck. At that point, Mr. Jordan became more aggressive, raising his voice, pointing his finger at the volunteer, and making a statement to the effect of, "You'd better fix it, or I'll come for you." While I cannot verify the exact wording, multiple witnesses reported the comment as threatening in nature.

When I observed Mr. Jordan's aggressive posture and finger-pointing toward the volunteer, I immediately began walking across the pool deck. By the time I arrived, he had exited the area.

Hosting a meet of approximately 400 swimmers requires the efforts of numerous volunteers, officials, coaches, and athletes. Mistakes occasionally occur but our officials work to resolve them fairly and promptly. In this case, the error was identified and corrected, and [redacted] was given the opportunity to compete.

I am bringing this incident to your attention because it involved conduct that extended well beyond a disagreement regarding a meet decision. Mr. Jordan entered a restricted area after being directed not to do so, disregarded repeated instructions from meet personnel, verbally confronted volunteers, and made statements that were perceived by multiple witnesses as threatening. The incident was witnessed by multiple volunteers and meet personnel.

Our volunteers are parents who donate their time to support youth swimming. No volunteer, official, coach, athlete, or spectator should be subjected to intimidation or threats while carrying out their responsibilities. This behavior creates an unsafe and disruptive environment and is inconsistent with the standards of sportsmanship expected at youth sporting events.

As the organization responsible for Iron Horse Aquatics, I ask that you review this incident under its applicable parent, spectator, and athletic conduct policies and take whatever action it deems appropriate to ensure the safety of participants, volunteers, officials, and host teams at future swim meets.

I also want to be clear that we do not hold Iron Horse Aquatics, its coaches, athletes, or other families responsible for the actions of this individual. We enjoy hosting Iron Horse Aquatics and value the positive relationship between our organizations.

However, Mr. Jordan's conduct was inconsistent with the standards of sportsmanship, respect, and safety that we expect from all participants and spectators at our events. His behavior created an intimidating environment for our volunteers and disrupted the operation of the meet. As a result, Mr. Jordan is not welcome on the NWAA Sharks pool deck at future events.

I would be happy to provide any additional details or context if needed. I can be reached at [redacted]

Sincerely,

[redacted]
NWAA Sharks

EVIDENCE F

5. Confirmation of whether the office conducting this investigation is aware of other matters I currently have pending with the District, and whether any communication or coordination has occurred between the office conducting this investigation and other District offices in connection with the matters referenced in your email.

Upon receipt of the items above, I will provide a more detailed written response within a reasonable timeframe.

Thank you for your attention to this matter.

Respectfully,

Stephen Ray Jordan

Sincerely,
Stephen Jordan

On Tue, Jun 9, 2026, 16:35 FRANKS, MATTHEW <franksma@friscoisd.org> wrote:

> Dear Mr. Jordan,
>
> Following the incident that occurred this past weekend, additional information regarding your interactions with meet volunteers and officials has been brought to our attention.
>
> This email serves as formal notice that we will be conducting an investigation into your conduct as a potential violation of our Parent Code of Conduct.
>
> As part of this process, I would like to speak with you to obtain your account of the events in question. I am available for a phone conversation on Tuesday or Thursday between 11:30 a.m. and 1:30 p.m. Please let me know which date and time within those windows works best for you.
>
> Thank you for your cooperation and attention to this matter.

Matt Franks
Head Club Swim Coach
Assistant Natatorium Manager
franksma@friscoisd.org
469-633-6176
Frisco ISD Swim Center
7210 Stadium Lane
Frisco, TX 75034

Matt Franks
Head Club Swim Coach
Assistant Natatorium Manager
franksma@friscoisd.org
469-633-6176
Frisco ISD Swim Center
7210 Stadium Lane
Frisco, TX 75034

From: Stephen Jordan <srjordan@gmail.com>
Sent: Tuesday, June 9, 2026 19:35
To: FRANKS, MATTHEW <franksma@friscoisd.org>
Cc: HOWARD, MELISSA <howardme@friscoisd.org>; SATO, DAIKI <satod@friscoisd.org>
Subject: Re: Report of Conduct at the NWAA Team Travel Meet

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Dear Mr. Franks,

Thank you for your email regarding the incident this past weekend.

I take any concern about my conduct around District programs seriously, and I want to participate in this process in good faith. I am requesting that the investigation proceed in writing rather than by telephone, so that there is a clear and accurate record on both sides.

For the record, the events I am aware of are as follows. My son was placed in the wrong heat and lane for an event at the meet this past weekend, the result of a coaching error that was subsequently acknowledged in writing by program staff. After the error became apparent, I stepped approximately ten feet onto the swim deck near the entrance to speak with my son. I also expressed, by text message to the Swim/Dive Coordinator and Coach Sato, my frustration with what had occurred and asked to speak with the person running the meet. Both responded, the matter was acknowledged, and I stated in writing that I would let the matter drop. I have preserved that text exchange in full.

If there is any allegation beyond what I have just described, I would appreciate the following in writing before I respond further:

1. The specific allegations being investigated, including a description of the conduct alleged.
2. The source of the "additional information" referenced in your email, including the names and roles of any individuals who have provided statements, and copies of those statements.
3. The specific provision of the Parent Code of Conduct under which my conduct is being evaluated, together with a copy of the Code and the District's procedures for parent conduct investigations, including any right of response, appeal, or representation.
4. The name and role of the District employee or designee conducting the investigation, and that person's reporting chain.

EVIDENCE G

Outlook

Fw: Report of Conduct at the NWAA Team Travel Meet

From FRANKS, MATTHEW <franksma@friscoisd.org>
Date Mon 6/15/2026 7:08 PM
To HOWARD, MELISSA <howardme@friscoisd.org>

Since he didn't add you to the response.

Matt Franks
Head Coach - Iron Horse Aquatics
Assistant Natatorium Manager
franksma@friscoisd.org
469-633-6176

From: Stephen Jordan <srjordan@gmail.com>
Sent: Monday, 15 June 2026 18:21:22
To: FRANKS, MATTHEW <franksma@friscoisd.org>
Subject: Re: Report of Conduct at the NWAA Team Travel Meet

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Thank you for your message confirming that written correspondence is an acceptable format and that my prior email will be received as my official statement on the underlying events.

I am writing to confirm a few procedural points and to renew one question from my prior message that was not addressed in your reply.

1. Written correspondence path. I confirm that I prefer to proceed through written correspondence only. I accept your acknowledgment that my prior email response will serve as my official statement on the underlying events of the Arkansas travel meet.

2. Item 5 — coordination between offices. My prior response included a specific question (Item 5) asking whether the office conducting this investigation is aware of my other pending matters with the District and whether any coordination has occurred between offices. Your reply does not address this question. I respectfully renew the request for a direct written response.

3. Identity of interviewees. Your message indicates that statements will be collected from Iron Horse staff members who attended the meet, as well as from the meet director and the NWAA administrative official. For procedural completeness, please identify by name:

- Each Iron Horse staff member is to be interviewed
- The meet director is to be interviewed
- The NWAA administrative official to be interviewed

4. Disclosure of pending matters. For the record, I am the complainant in pending USA Swimming Code of Conduct complaints involving multiple Iron Horse Aquatics coaches. To the extent that any of those individuals are among the Iron Horse staff members to be interviewed in this investigation, I note this fact so that the investigation may consider any bearing it may have on the evaluation of statements collected.

5. Minor child. I expect that no statement will be collected from my son in connection with this investigation without my prior written consent.

6. Findings and disposition. You have indicated that written findings will be issued upon completion of the investigation. Please confirm:

- The estimated timeline for the issuance of findings
- Whether the findings will be retained in any FISD personnel, student, or family file
- Whether the findings will be shared with any other FISD office or with any external entity

7. Reservation. I reserve the right to supplement my statement in writing upon receipt of additional information bearing on this matter.

Thank you for confirming receipt of this message.

Respectfully,

Stephen Ray Jordan
13054 Cinderella Ln
Frisco, Texas 75035
srjordan@gmail.com | 972.403.1231

On Mon, Jun 15, 2026 at 5:52 PM FRANKS, MATTHEW <franksma@friscoisd.org> wrote:

> Mr Jordan,
>
> Thank you for your willingness to work with us as we seek to gain a clear understanding of the events that occurred during the Arkansas Travel Meet.
>
> If you prefer to proceed through written correspondence only, the email response you have already provided will be accepted as your official statement. However, to ensure we gather the most complete and accurate information possible, we believe a phone conversation or in-person meeting would be the most effective approach. Should either option be selected, both parties may reserve the right to record the discussion for accuracy and documentation purposes.
>
> As part of the remainder of our review, we will collect information and statements from Iron Horse staff members who attended the meet, as well as from the meet director and the NWAA administrative official.
>
> Once all relevant information has been gathered and reviewed, we will conclude our investigation. Following the completion of the investigation, you will receive written notification outlining our findings.
>
> Thank you again for your prompt response and cooperation throughout this process.

EVIDENCE H

I am bringing this incident to your attention because it involved conduct that extended well beyond a disagreement regarding a meet decision. Mr. Jordan entered a restricted area after being directed not to do so, disregarded repeated instructions from meet personnel, verbally confronted volunteers, and made statements that were perceived by multiple witnesses as threatening. The incident was witnessed by multiple volunteers and meet personnel.

Our volunteers are parents who donate their time to support youth swimming. No volunteer, official, coach, athlete, or spectator should be subjected to intimidation or threats while carrying out their responsibilities. This behavior creates an unsafe and disruptive environment and is inconsistent with the standards of sportsmanship expected at youth sporting events.

As the organization responsible for Iron Horse Aquatics, I ask that you review this incident under its applicable parent, spectator, and athletic conduct policies and take whatever action it deems appropriate to ensure the safety of participants, volunteers, officials, and host teams at future swim meets.

I also want to be clear that we do not hold Iron Horse Aquatics, its coaches, athletes, or other families responsible for the actions of this individual. We enjoy hosting Iron Horse Aquatics and value the positive relationship between our organizations.

However, Mr. Jordan's conduct was inconsistent with the standards of sportsmanship, respect, and safety that we expect from all participants and spectators at our events. His behavior created an intimidating environment for our volunteers and disrupted the operation of the meet. As a result, Mr. Jordan is not welcome on the NWAA Sharks pool deck at future events.

I would be happy to provide any additional details or context if needed. I can be reached at [redacted]

Sincerely,

[redacted]

NWAA Sharks

Phone call 6/16/26 @ 9:22am

- Physical contact? - Couldn't tell from her view point
  - Finger very close in her face / leaning over her / intimidating
  - [redacted] - volunteer
  - [redacted] at
- If on deck again - he a son removed from that meet.

Corporal
~~Officer~~ Nunez

↳ not able to access it

Call w/ [redacted] - 6/17/24

- left mess

[redacted] - volunteer / witness 6/17/24

- got in [redacted]s face

-

I am bringing this incident to your attention because it involved conduct that extended well beyond a disagreement regarding a meet decision. Mr. Jordan entered a restricted area after being directed not to do so, disregarded repeated instructions from meet personnel, verbally confronted volunteers, and made statements that were perceived by multiple witnesses as threatening. The incident was witnessed by multiple volunteers and meet personnel.

Our volunteers are parents who donate their time to support youth swimming. No volunteer, official, coach, athlete, or spectator should be subjected to intimidation or threats while carrying out their responsibilities. This behavior creates an unsafe and disruptive environment and is inconsistent with the standards of sportsmanship expected at youth sporting events.

As the organization responsible for Iron Horse Aquatics, I ask that you review this incident under its applicable parent, spectator, and athletic conduct policies and take whatever action it deems appropriate to ensure the safety of participants, volunteers, officials, and host teams at future swim meets.

I also want to be clear that we do not hold Iron Horse Aquatics, its coaches, athletes, or other families responsible for the actions of this individual. We enjoy hosting Iron Horse Aquatics and value the positive relationship between our organizations.

However, Mr. Jordan's conduct was inconsistent with the standards of sportsmanship, respect, and safety that we expect from all participants and spectators at our events. His behavior created an intimidating environment for our volunteers and disrupted the operation of the meet. As a result, Mr. Jordan is not welcome on the NWAA Sharks pool deck at future events.

I would be happy to provide any additional details or context if needed. I can be reached at [redacted]

Sincerely,

[redacted]

NWAA Sharks

Phone call 6/16/26 @ 9:22am

- Physical contact? - Couldn't tell from her view point
  - Finger very close to her face / leaning over her / intimidating
  - [redacted] - volunteer
  - [redacted] at
- IPON deck again - he was removed from that meet.

EVIDENCE I

Outlook

Re: Contact Info

From HOWARD, MELISSA <howardme@friscoisd.org>
Date Tue 6/16/2026 10:31 AM
To [redacted]

Thank you so much!

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: [redacted]
Sent: Tuesday, June 16, 2026 9:36 AM
To: HOWARD, MELISSA <howardme@friscoisd.org>
Subject: Contact Info

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,
Thank you for the phone call and follow up today. Below is the information you requested.
[redacted]

Please let me know if you need anything else from me!

Thanks,
[redacted]
Northwest Arkansas Aquatics

northwest arkansas aquatics
NWAA SHARKS

EVIDENCE J

- [redacted] call - 6/16 @ 9:30am
  - = no personal info - only second hand info
  - will email aquatic director for security footage

Phone call to [redacted] - 6/16/20 @ 1:58pm
- Voicemail - left message
- called right back
- at gate Friday night - recording

Corporal
~~Officer~~ Nunez

↳ not able to access it

Call w/ [redacted] - 6/17/24
- left mess

[redacted] - volunteer / witness 6/17/24
- got in [redacted]s face
-

EVIDENCE K

Outlook

Re: Incident - 6/5 PM

From HOWARD, MELISSA <howardme@friscoisd.org>
Date Wed 6/17/2026 10:05 AM
To [redacted]; FRANKS, MATTHEW <franksma@friscoisd.org>

[redacted]

No problem at all! We will reach out to the non-emergency line. We just appreciate you getting back to us!

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: [redacted]
Sent: Tuesday, June 16, 2026 6:44 PM
To: HOWARD, MELISSA <howardme@friscoisd.org>; [redacted]; FRANKS, MATTHEW <franksma@friscoisd.org>
Subject: Re: Incident - 6/5 PM

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Everyone,

Unfortunately, we are unable to provide camera footage or information regarding footage captured by our security cameras.

However, the Bentonville Police Department has access to our camera system and can review footage if an incident occurred within the camera's field of view. If you would like to request that footage be reviewed, I recommend contacting the Bentonville Police Department's non-emergency line at 479-271-3170. If the situation is an emergency or is more urgent, please call 911.

I apologize that I am not able to personally investigate, but thank you for your understanding.

Sincerely,
[redacted]

[redacted]
1101 SW Citizen Circle
Bentonville, AR 72713
[redacted]
www.playbentonville.com

From: HOWARD, MELISSA <howardme@friscoisd.org>
Sent: Tuesday, June 16, 2026 11:52 AM
To: [redacted]; FRANKS, MATTHEW <franksma@friscoisd.org>
Subject: Re: Incident - 6/5 PM

Some people who received this message don't often get email from howardme@friscoisd.org. Learn why this is important

[redacted]

Thank you so much for sending this inquiry. Just a slight correction - the date of the alleged incident was Friday, June 5th, same timeframe as you mentioned.

[redacted] - we appreciate your efforts.

Thanks again!

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: [redacted]
Sent: Tuesday, June 16, 2026 11:40 AM
To: [redacted]; FRANKS, MATTHEW <franksma@friscoisd.org>; HOWARD, MELISSA <howardme@friscoisd.org>
Subject: Incident - 6/5 PM

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

[redacted]

I hope you are both having a good week.

I am writing to request a review of our facility's security footage from this past Friday evening, June 12th, during the Memorial Classic.

Between 6:15pm and 6:45pm, an incident occurred involving a spectator who bypassed our facility check-point and barged past our meet marshal, [redacted] The individual has been described as a parent of a swimmer from Iron Horse Aquatics, mid-60s, slightly round build, with slicked-back grey

hair.

I have been informed that an altercation took place behind our scoreboard, where this individual was reportedly threatening someone. The leadership at Iron Horse Aquatics has reached out to me directly asking if there is any video footage available of the incident.

Could you please check the security cameras covering the area behind the scoreboard during that 6:15–6:45 PM window on Friday to see if we captured this on camera?

(Note: Matt Franks and his supervisor, Melissa Howard, have been copied on this email for their awareness.)

Thank you both for your help with this investigation. Please let me know what you find.

[redacted]

Northwest Arkansas Aquatics

EVIDENCE L

Audio file – [redacted]

Arkansas incident statement - [redacted]

Transcript

00:00:00 Speaker 1

I can tell you my part of it.

00:00:01 Speaker 2

Okay, and I did just, I am recording this just so but if you want to go ahead and tell us your part and then we can ask some questions.

00:00:09 Speaker 2

And if you don't mind sending us that statement, that would also be helpful as well.

00:00:16 Speaker 2

But we just appreciate any information you can provide us.

00:00:19 Speaker 2

So the floor is to us.

00:00:23 Speaker 1

Yeah, no, I was going to meet [redacted] so I was at the gate.

00:00:27 Speaker 1

keeping people from coming onto the pool deck that weren't supposed to be on the pool deck.

00:00:33 Speaker 1

And he approached the edge of the gate and with a lot of anger, spoke and said that he needed to speak within the official, that something had just happened and he needed it taken care of right now.

00:00:46 Speaker 1

And so I said, OK, Sir, wait just one minute and I'll get someone that can help you.

00:00:53 Speaker 1

And so I turned around and there were two of our hospitality room volunteers kind of standing maybe like 30 feet on behind on behind me on the pool deck watching their children watching somebody swim.

00:01:07 Speaker 1

They had just stepped out of the hospitality room and stepped up by the pool and it was two ladies that I knew from our club and so I went over to them because I didn't want to leave my post as the meat Marshall at the pool deck and I said this gentleman.

00:01:20 Speaker 1

I said I have a gentleman that needs help.

00:01:22 Speaker 1

He says that there's been a problem and he needs to talk to an official about an issue with a race.

00:01:28 Speaker 1

And about that time I turned around and he was on standing behind me like he had followed me onto the pool deck and was right there with them.

00:01:36 Speaker 1

And I said, oh, I'm can you please step back off the pool deck?

00:01:39 Speaker 1

And he just proceeded to tell the girls and me there was two other ladies and me.

00:01:45 Speaker 1

Very loudly.

00:01:47 Speaker 1

Somebody swam in my son's race, but they called in lane, but they called his name and it's going to be the wrong.

00:01:52 Speaker 1

It's not going to be his time and something's not right.

00:01:55 Speaker 1

He wasn't there.

00:01:56 Speaker 1

I have to talk to somebody and get this fixed right now.

00:01:59 Speaker 1

And so one of those moms like, well, hold on, just wait right here.

00:02:03 Speaker 1

I'll go to the head tent and see if I can get somebody to help you.

00:02:07 Speaker 1

And I said, Sir, I'm going to need you to please step back off the pool deck.

00:02:11 Speaker 1

And instead, he went, he just went right past me and went right behind the blocks.

00:02:16 Speaker 1

And I think it's because he saw his son come out of the pool because then when I looked over, he was talking to his son.

00:02:25 Speaker 1

So I think.

00:02:26 Speaker 1

I think that's why he went on and went over behind the blocks like where the swimmers would start swimming.

00:02:33 Speaker 2

Yes.

00:02:34 Speaker 1

And I went back over to my post because now that's quite a ways away from the entrance to the pool deck.

00:02:39 Speaker 1

And so I didn't want to leave that area.

00:02:41 Speaker 1

And because that was my responsibility was to make sure people didn't come onto the pool deck that weren't supposed to.

00:02:46 Speaker 1

So I kind of left it to the other two.

00:02:49 Speaker 1

moms from the hospitality room to take care of the situation.

00:02:53 Speaker 1

And so then I just went back over to my spot and I saw them all talking at that, like I saw the mom I know go over to the head kit and talk to him.

00:03:04 Speaker 1

And then an official Kerry came over and was trying to talk to him and he was talking to his son.

00:03:08 Speaker 1

And then finally he and his son both walked off the pool deck.

00:03:13 Speaker 3

Stacy, one quick- I.

00:03:14 Speaker 1

Don't know what the interchange was over behind the blocks because I wasn't there.

00:03:19 Speaker 3

Quick question, I haven't been out at that meet in probably two or three years.

00:03:22 Speaker 3

That's a good, what, 20 yards between that choke point that you guys create for, you know, to keep athletes and coaches being the only ones on deck.

00:03:31 Speaker 3

That's quite a distance that he just decided to navigate.

00:03:34 Speaker 1

It is.

00:03:35 Speaker 1

And I had asked him when he followed me onto the pool deck and I was trying to get help for him.

00:03:40 Speaker 1

And instead of waiting at the gate, he followed me with his big camera and his

00:03:47 Speaker 1

anger and I turned around to kind of show them who the gentleman was that needed help because they were going to go get somebody to help him.

00:03:55 Speaker 1

He was standing right behind me like he had followed me onto the deck.

00:03:58 Speaker 1

And I was like, whoa, I'm going to need you to step back off the pool deck.

00:04:02 Speaker 1

And he still didn't.

00:04:02 Speaker 1

He just went right on.

00:04:03 Speaker 1

He didn't comply.

00:04:04 Speaker 1

And went to the behind the blocks.

00:04:06 Speaker 1

And like I said, I don't know why he did that, but I'm thinking maybe it's because then I think his son did swim, but swim in like a heat or two later.

00:04:15 Speaker 1

And I think then he saw him maybe getting out of the pool.

00:04:19 Speaker 1

And so then he went right over to the back of the starting blocks and started talking to his son and the other moms were over there.

00:04:25 Speaker 1

And like I said, I don't know what was interchanged there because I

00:04:28 Speaker 1

went back to my post as Late Marshall.

00:04:31 Speaker 3

But he was pretty heated throughout that entire.

00:04:34 Speaker 1

Oh, the whole time.

00:04:35 Speaker 1

He was having, yeah, absolutely.

00:04:37 Speaker 1

He would not listen to me.

00:04:39 Speaker 1

He was not doing anything we were asking him to do.

00:04:41 Speaker 1

He was very upset.

00:04:43 Speaker 1

He was very upset about what had happened.

00:04:45 Speaker 1

And I'm not even really clear on what happened.

00:04:47 Speaker 1

Yeah.

00:04:47 Speaker 1

I mean, from what I could gather, I mean, when he was, because then he, the one other part that I do wanna say is as he stepped outside the gates, he just,

00:04:58 Speaker 1

He screamed and yelled so loud at that poor little boy.

00:05:01 Speaker 1

Everyone around him had stopped and was looking at him.

00:05:05 Speaker 1

Everyone.

00:05:06 Speaker 3

Unfortunately, it couldn't surprise us.

00:05:08 Speaker 1

I felt so bad for the little boy 'cause he was just humiliated.

00:05:12 Speaker 1

And I was just sitting at my post.

00:05:14 Speaker 1

I wasn't meaning to overhear what was happening.

00:05:16 Speaker 1

It's just that he did it like right on the other side of the gate where I was sitting.

00:05:20 Speaker 1

He was screaming at him about the little boy.

00:05:23 Speaker 1

He'd either written it down wrong on his arm, hit the wrong heat or the wrong lane.

00:05:27 Speaker 1

I'm not sure, but he was screaming.

00:05:29 Speaker 1

Had you not written it down wrong, you would have been in the right race and just was very upset with him.

00:05:36 Speaker 1

So that was that was really disappointing as well.

00:05:38 Speaker 1

But I mean, that's just on a personal note.

00:05:42 Speaker 1

And you know, I'm not getting anybody else's business.

00:05:44 Speaker 1

That's not.

00:05:45 Speaker 1

Parenting wise, that's not my business.

00:05:47 Speaker 1

But if he did kind of make a scene there, I mean, like everybody around that area stopped and was looking at him like, Oh my gosh, this guy is yelling at his kid really loud right here on the pool deck.

00:05:57 Speaker 2

Yeah, for sure.

00:05:59 Speaker 2

Couple of things and I just want to clarify like whenever.

00:06:03 Speaker 2

Whenever he approached you at that gate where you were standing guard as Marshall did and you asked him to stay there while you went to check.

00:06:14 Speaker 2

Okay.

00:06:14 Speaker 1

Yes, I did.

00:06:15 Speaker 1

I said, would you please wait here and I'm gonna go find somebody to help you.

00:06:18 Speaker 1

I told him I would find somebody to help him.

00:06:20 Speaker 2

Yeah.

00:06:20 Speaker 1

And I did.

00:06:21 Speaker 1

I immediately went to find somebody to help him.

00:06:24 Speaker 1

I did not ignore him.

00:06:25 Speaker 1

I did not ignore what he said.

00:06:26 Speaker 1

I had to find help.

00:06:27 Speaker 1

I just didn't expect him to follow me.

00:06:31 Speaker 2

Did he make any physical contact with you?

00:06:33 Speaker 2

Did he push past you?

00:06:34 Speaker 2

Did he do anything on that level?

00:06:37 Speaker 1

No.

00:06:38 Speaker 2

Okay.

00:06:39 Speaker 1

Not at all.

00:06:41 Speaker 1

He was just very angry in his voice.

00:06:43 Speaker 2

Yes.

00:06:43 Speaker 2

Okay.

00:06:44 Speaker 2

Yes.

00:06:44 Speaker 2

Okay.

00:06:46 Speaker 1

Yes, but no.

00:06:47 Speaker 2

Well, [redacted] one, thank you for your service and just how you help swim meets.

00:06:52 Speaker 2

We know how important it is to have really good volunteers and you sound like a wonderful one.

00:06:57 Speaker 2

And we just really want to reiterate our appreciation for you just taking the time to visit with us.

00:07:03 Speaker 2

Yes.

00:07:04 Speaker 2

Sure.

00:07:04 Speaker 3

Thanks so much.

00:07:05 Speaker 3

Sure.

00:07:06 Speaker 1

No problem.

00:07:07 Speaker 3

Do you want her to send you this?

00:07:08 Speaker 2

Yeah.

00:07:08 Speaker 2

Oh, and then let me get you my e-mail and you can just forward that on to me as well.

00:07:14 Speaker 1

Oh, I have it in a text message.

00:07:15 Speaker 1

Do you want me to just text it to this number?

00:07:17 Speaker 2

Yes.

00:07:17 Speaker 3

Sure.

00:07:17 Speaker 3

That'd be awesome.

00:07:18 Speaker 3

Thank you so much.

00:07:19 Speaker 1

Okay.

00:07:19 Speaker 1

Yeah.

00:07:19 Speaker 1

I'll just text it to this phone number.

00:07:21 Speaker 3

Okay.

00:07:21 Speaker 1

Because I had texted to [redacted] that night.

00:07:23 Speaker 1

So I'll just copy in case it.

00:07:24 Speaker 3

That could be why we didn't have it.

00:07:25 Speaker 2

Okay.

00:07:26 Speaker 2

Yeah, that's probably true.

00:07:27 Speaker 3

Okay.

00:07:28 Speaker 2

All right, [redacted]

00:07:29 Speaker 2

Thank you so much.

00:07:30 Speaker 3

Yes, ma'am.

00:07:30 Speaker 3

Thank you so much.

00:07:31 Speaker 1

Thank you guys.

00:07:33 Speaker 3

Have a great afternoon.

00:07:34 Speaker 1

You too, bye bye.

EVIDENCE M

Outlook

Re: June 5 Incident with Iron Horse parent

From HOWARD, MELISSA <howardme@friscoisd.org>
Date Wed 6/17/2026 1:46 PM
To [redacted]
Cc FRANKS, MATTHEW <franksma@friscoisd.org>

[redacted]

Thank you so much. We appreciate your help more than you know. The additional info can help us solidify the investigation. I also understand you are out of the country/on vacation so your response is very helpful, and we recognize your thoughtfulness in providing the info we have asked for.

Thank you again and enjoy your time away!

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: [redacted]
Sent: Wednesday, June 17, 2026 1:41 PM
To: HOWARD, MELISSA <howardme@friscoisd.org>
Cc: FRANKS, MATTHEW <franksma@friscoisd.org>
Subject: Re: June 5 Incident with Iron Horse parent

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Sure, find information below:

[redacted]

Best,
[redacted]

De: HOWARD, MELISSA <howardme@friscoisd.org>
Enviado: martes, 16 de junio de 2026 02:02 p. m.
Para: [redacted]
Cc: FRANKS, MATTHEW <franksma@friscoisd.org>
Asunto: Re: June 5 Incident with Iron Horse parent

[redacted]

Thank you so much! One question - did [redacted] or any other volunteers also overhear his statement to you regarding "You better fix it or I'll come for you!"? If there were other witnesses, could you provide their names and possible contact info as well?

We appreciate it!

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: [redacted]
Sent: Tuesday, June 16, 2026 2:45 PM
To: HOWARD, MELISSA <howardme@friscoisd.org>
Cc: FRANKS, MATTHEW <franksma@friscoisd.org>
Subject: Re: June 5 Incident with Iron Horse parent

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Melissa,

Of course,happy to help. Friday June 5th I was serving Hospitality team and one of the Meet Marshals brought to our attention that a parent was upset about an issue involving his swimmer's event and entered the swimmers' area.

[redacted], one of our crew members, approached the parent and assured him that she would help address the issue. She then spoke with [redacted] and then informed him that the matter was being taken care of and would be fixed.

At that point, the parent called his swimmer over and began yelling at him in front of us regarding the incident (apparently the boy swam in a lane different than the one the parent had wrote on his arm).

After several minutes, and because of his aggressive behavior, I approached him and reminded him that parents were not permitted in the swimmers' area. He immediately became upset and began yelling at me, stating that a major mistake had been made from our end.

I calmly explained that the issue was already being addressed and would be resolved, and I again asked him to leave the area. He then became more aggressive, raising his voice and pointing his finger at me while making a statement along the lines of, "You'd better fix it, or I'll come for you" (I cannot recall his exact words). After making those remarks, he left the area.

Please let me know if there is anything else I can help with.

[redacted]

Obtener Outlook para iOS

De: HOWARD, MELISSA <howardme@friscoisd.org>
Enviado: Tuesday, 16 June 2026 09:16:47
Para: [redacted]
Cc: FRANKS, MATTHEW <franksma@friscoisd.org>
Asunto: June 5 Incident with Iron Horse parent

Good morning, [redacted]

I am the Frisco ISD Aquatics Coordinator, and I wanted to reach out to you regarding the incident with the Iron Horse parent on Friday, June 5th during and after the boys 11-12 50 Breast event. We are investigating that parent's behavior and wanted to get some first-hand information from the people he interacted with. In speaking with [redacted] she provided your information since you were the volunteer that he approached.

Would you be willing to provide information for us regarding the details of that interaction? You can provide a written statement, or we can do a phone call if you would prefer. It just needs to include the factual information of what you experienced in your interaction with this parent. If we need any clarification from your statement, we may follow up with you if you don't mind.

Please let us know if you have any questions at all and we appreciate your help in this matter.
Sincerely,
Melissa Howard

Natatorium

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

EVIDENCE N

Audio file – phone call [redacted] /NWAA volunteer

Call Recording (1).m4a

Transcript

00:00:01 Speaker 1

Okay, if you don't mind, will you tell me your name again and kind of what your job was at the swim meets on June 5th, Friday, June 5th?

00:00:13 Speaker 2

Yes, my name is [redacted] and I was running the hospitality for the meet.

00:00:19 Speaker 1

Okay, thank you so much.

00:00:20 Speaker 1

And then as I described, I was talking to you about

00:00:25 Speaker 1

the just like looking into the incident with our parent that did not follow protocol.

00:00:31 Speaker 1

And I just wanted to get your perspective and any insight you had on that situation.

00:00:38 Speaker 2

Okay.

00:00:41 Speaker 2

Well, it started, I guess, the

00:00:48 Speaker 2

parent or grandparent involved came up to our meat marshal that was kind of manning the entry to the pool deck and asked to go in and was expressing that he was upset that his swimmer had missed a, had not swam in his heat, but another swimmer had swam in his place and the time had been posted as his swimmers

00:01:15 Speaker 2

time was how I understood it.

00:01:17 Speaker 2

Sure.

00:01:19 Speaker 2

And so he, I guess the, our meat marshal was trying to explain to him that he could not come onto the pool deck.

00:01:27 Speaker 2

And he was kind of continuing to insist that he needed to.

00:01:31 Speaker 2

And so she, I just happened to be standing, hospitality was right back behind where they were.

00:01:38 Speaker 2

And so she called me over and he told me what he was upset about, the other swimmer swimming in his lane.

00:01:45 Speaker 2

And I let him know I would go get our meet director to come over and talk to him about it.

00:01:53 Speaker 2

And so he said, okay, but continued to insist on coming into past where parents and spectators were allowed to go past.

00:02:04 Speaker 2

And our meet marshal was trying to stop him, but he was kind of raising his voice a little bit and talking about how this had been a huge mistake, a huge mistake.

00:02:15 Speaker 2

And then he kind of started saying, it's your fault, it's your fault to just kind of whoever was standing there.

00:02:22 Speaker 2

And so I walked around to the other, whole other side of the pool where our meat director and our president of our board were sitting over in the tent.

00:02:33 Speaker 2

And he kind of followed me maybe a quarter of the way.

00:02:35 Speaker 2

And then he did stop when he got to about where the timers started.

00:02:40 Speaker 2

Okay.

00:02:41 Speaker 2

And when I got there, our president let me know that they were aware that the situation had happened with the other swimmer, that the boy who was the child of the man that was upset was swimming right then, actually literally at that moment in lane one to make up his swim and that they were going to make sure they were aware that he had gotten a time that wasn't his and they were going to make sure that he got his correct time.

00:03:07 Speaker 2

So

00:03:09 Speaker 2

I headed back over and the man was standing there still pretty angry, still kind of yelling.

00:03:16 Speaker 2

I let him know what she told me and his child was finishing swimming right then in lane one.

00:03:24 Speaker 2

And he kind of continued to yell, it better be fixed.

00:03:28 Speaker 2

It better be fixed.

00:03:29 Speaker 2

This is a this is a big mistake.

00:03:31 Speaker 2

This is on you.

00:03:31 Speaker 2

This is on you.

00:03:33 Speaker 2

And then the other person [redacted], that was helping me in hospitality,

00:03:37 Speaker 2

walked up and asked if she could help.

00:03:39 Speaker 2

And he sort of got all the way up in her face and kind of bowed up over her with his, pointing his finger kind of down at her saying, if this isn't fixed, I'm coming back for you.

00:03:52 Speaker 2

Okay.

00:03:52 Speaker 2

And saying that over and over with.

00:03:56 Speaker 2

And so she.

00:03:59 Speaker 2

We just kind of said, it sounds like it's fixed.

00:04:03 Speaker 2

We were all just kind of trying to let him, at this point, our president did see that it was kind of escalating and it started walking over.

00:04:09 Speaker 2

But at that point, the little boy got out of lane one after his race and the man started and started to walk away back towards his tent with his team.

00:04:21 Speaker 2

And the man started yelling at him aggressively, made him come over, kind of got

00:04:29 Speaker 2

vote up on him and yelling at him.

00:04:32 Speaker 2

It wasn't me.

00:04:33 Speaker 2

I told you right.

00:04:34 Speaker 2

I told you the right thing.

00:04:35 Speaker 2

I wasn't wrong.

00:04:36 Speaker 2

And then I didn't hear everything he said.

00:04:38 Speaker 2

I just heard him saying it was, I told you right.

00:04:41 Speaker 2

And the little boy wasn't really saying anything.

00:04:46 Speaker 2

And then at that point, our president, [redacted] came over and told him, you know, that it was fixed and that he had to leave the pool deck.

00:04:57 Speaker 2

And

00:04:58 Speaker 2

He eventually did angrily, but he did eventually leave.

00:05:01 Speaker 1

Okay.

00:05:04 Speaker 1

And you don't know, did he make physical contact with anybody, any of the officials, any of the volunteers?

00:05:10 Speaker 1

I mean, maybe other than his or anybody's kid.

00:05:16 Speaker 2

Not that.

00:05:18 Speaker 2

Not that I know of.

00:05:19 Speaker 2

I don't think he made physical contact with [redacted]

00:05:22 Speaker 2

She was the one that I would say he got the most aggressive with and the closest to, but not to my knowledge.

00:05:31 Speaker 1

Okay, And there's, and that was the, basically the summary of it to the best of your knowledge.

00:05:39 Speaker 2

Yes.

00:05:40 Speaker 1

Okay.

00:05:41 Speaker 1

Well, [redacted] again, I really appreciate your time and I appreciate you just giving me a call back.

00:05:47 Speaker 1

And thank you so much for your help with swim meets because I know that we can't do those things without you guys and you're invaluable.

00:05:55 Speaker 1

So I know our team loves coming to that swim meet and so we appreciate you all very, very much.

00:06:00 Speaker 2

Well, I'm so glad.

00:06:02 Speaker 2

We love having your team.

00:06:03 Speaker 1

Well, good.

00:06:04 Speaker 1

I'm very glad and I won't keep you any longer.

00:06:07 Speaker 1

So thank you so much.

00:06:09 Speaker 2

Okay, yeah, no problem.

00:06:10 Speaker 1

All right, take care.

00:06:12 Speaker 2

All right, bye.

00:06:12 Speaker 2

Bye-bye.

EVIDENCE O

Audio file – Phone call with [redacted]/NWAA volunteer

Call Recording.m4a

Transcript

00:00:01 Speaker 1

[redacted] hi.

00:00:02 Speaker 1

If you don't mind, will you restate your name and your role that you had at the swim meet on Friday, June 5th?

00:00:09 Speaker 2

My name is [redacted]

00:00:11 Speaker 2

I am a mom of swimmers at Northwest Arkansas Aquatics and I'm also the [redacted] for the team and so have a USA Swimming

00:00:22 Speaker 2

sort of volunteer certification for that.

00:00:25 Speaker 1

Okay, perfect.

00:00:26 Speaker 1

Thank you so much.

00:00:26 Speaker 1

And like I mentioned, I was just calling to visit with you very briefly about the incident that happened with one of our parents on that Friday.

00:00:35 Speaker 1

It's our understanding that there was kind of an altercation and he didn't necessarily follow protocol.

00:00:42 Speaker 1

And I just wanted to get your take as what you witnessed and what you saw and just anything of note from that incident.

00:00:51 Speaker 2

Sure.

00:00:52 Speaker 2

I was coming around the starting block side of the pool and the finishing side of the pool.

00:00:58 Speaker 2

Is that where the timers were?

00:01:01 Speaker 2

Yeah, where the timers were.

00:01:02 Speaker 2

Yes, where the timers are.

00:01:04 Speaker 2

Okay.

00:01:06 Speaker 2

And I saw my friend [redacted] who is the snack lady for the meet, talking to a parent.

00:01:17 Speaker 2

who sort of was, you know, arms raised.

00:01:20 Speaker 2

There may have been finger pointing in the face.

00:01:22 Speaker 2

It looked heated well into the sort of volunteers only portion of the pool deck.

00:01:30 Speaker 2

It was a good 30 to 40 feet past the line where it says this is a closed deck, only athletes and volunteers beyond this point.

00:01:37 Speaker 2

We have the Marshall meet Marshall

00:01:43 Speaker 2

stopping people at that point.

00:01:44 Speaker 2

So I did not see him cross that line, but I saw him once he was across.

00:01:49 Speaker 2

And I initially had no idea what the disagreement was about, but I kept hearing him say, this is on you.

00:01:57 Speaker 2

This is your fault.

00:02:00 Speaker 2

You know, this was a huge mistake.

00:02:03 Speaker 2

And

00:02:05 Speaker 2

I'm trying to remember the exact phrase he used, but he was singling out her saying, this is going to come back on you.

00:02:13 Speaker 2

You guys messed it up for my kid and this is your fault.

00:02:17 Speaker 2

And I'm sitting here going, she hands out snacks, tears.

00:02:19 Speaker 2

What could possibly be her fault?

00:02:23 Speaker 2

And so I didn't find out until after.

00:02:26 Speaker 2

Thankfully, he was sort of escorted away.

00:02:31 Speaker 2

I simply came in to sort of be a supportive presence for her.

00:02:35 Speaker 2

So that, I don't know if he was, I didn't know how he was going to escalate from there.

00:02:39 Speaker 2

Thankfully, nothing became physical that I saw.

00:02:41 Speaker 2

I didn't see him lay hands on her, but he was choosing to not leave the deck as he had been asked.

00:02:55 Speaker 2

And his sweet little child was standing there looking mortified.

00:03:05 Speaker 2

And I don't even recall how it ended and he ushered himself off the deck, but left in a huff.

00:03:12 Speaker 2

I will share that my real job in life is that I'm a pediatrician.

00:03:17 Speaker 2

And so I am a mandatory reporter for child abuse.

00:03:22 Speaker 2

And while I didn't see dad do or say anything directly to the child,

00:03:26 Speaker 2

this incident was extremely concerning to me for what the environment might be like at home.

00:03:32 Speaker 2

And so my greatest concern is that for unsafe home environments, sports are sometimes the only safe haven these kids have.

00:03:45 Speaker 2

And I would be devastated if a safe environment with safe adults and friends and purpose

00:03:54 Speaker 2

are taken away from him because of his parents' behavior.

00:03:57 Speaker 2

So I don't, I'm not gonna tell you how to do your job, but I was really torn about, you know, I can tell the truth of what I saw.

00:04:06 Speaker 2

That's no problem.

00:04:08 Speaker 2

I don't know what you're gonna do, but I hope if anything concerning has been seen on your organization's end,

00:04:16 Speaker 2

I hope that reports have been made to Child Protective Services in an effort to get this kid the safety and support that he deserves, because my impression is that this is not the first time this has occurred.

00:04:29 Speaker 2

And I would I would have grave concerns for a child being around that man.

00:04:39 Speaker 2

To me, he seemed

00:04:42 Speaker 2

anything else would be conjecture, which isn't fair.

00:04:44 Speaker 2

I'll just tell you what I saw and heard.

00:04:46 Speaker 1

Sure.

00:04:49 Speaker 1

Did you hear him make any threats to [redacted] as in any way, shape or form?

00:04:59 Speaker 2

I did not hear him say, you know, any threats of physical thing.

00:05:05 Speaker 2

It was just sort of finger pointing and

00:05:09 Speaker 2

this is going to come back on you.

00:05:12 Speaker 2

It really may not be a direct, but that was the emphasis that I heard, that he was holding her accountable for whatever the error was of a misheed or a wrong lane or whatever it was for the swimmer.

00:05:27 Speaker 2

And this is all your fault.

00:05:29 Speaker 2

You guys screwed up big time and it's on you.

00:05:32 Speaker 2

And I, yeah, so I did not hear a threat.

00:05:37 Speaker 1

Okay.

00:05:37 Speaker 2

And then he was physically imposing.

00:05:40 Speaker 2

I would have been, I would have been scared.

00:05:43 Speaker 1

Yeah.

00:05:43 Speaker 2

It was directed at me.

00:05:44 Speaker 1

And that, and then just to clarify, you did not see him physically or did you witness him?

00:05:52 Speaker 1

I guess just to clarify, did you see anything with him physically with his son?

00:06:00 Speaker 1

Or is it just?

00:06:01 Speaker 2

I did not, no.

00:06:02 Speaker 2

I did not see.

00:06:04 Speaker 2

I think he said, come with me.

00:06:06 Speaker 2

And I'm not sure that he even grabbed him.

00:06:08 Speaker 2

I would not be able to report on whether he touched him at all.

00:06:15 Speaker 2

No, it was simply, it was sort of an, I would consider an unsafe emotional, psychological state.

00:06:24 Speaker 1

Okay.

00:06:27 Speaker 1

Well, [redacted], I,

00:06:29 Speaker 1

really do appreciate you taking the time to call and the information you provided is very helpful.

00:06:35 Speaker 1

And if you think of anything else, please feel free to give me a call back.

00:06:40 Speaker 1

And we just, I want to reiterate how much our team really does love coming to your meet and they enjoy being there.

00:06:47 Speaker 1

And so we appreciate you guys and we know volunteers don't, the swim meets don't happen without the volunteers.

00:06:56 Speaker 2

[redacted] responded so well as far as I'm concerned.

00:07:00 Speaker 2

I, yes, I was glad it wasn't me being targeted.

00:07:05 Speaker 1

I understand that as well.

00:07:07 Speaker 1

I will let you get back to your day.

00:07:08 Speaker 1

And again, I appreciate the phone call and just the information.

00:07:11 Speaker 1

It's very helpful.

00:07:13 Speaker 2

No problem.

00:07:14 Speaker 2

Good luck.

00:07:14 Speaker 2

I'm sure this is hard.

00:07:15 Speaker 1

Yeah.

00:07:15 Speaker 1

Thank you so much, [redacted]

00:07:16 Speaker 1

I appreciate you.

00:07:17 Speaker 2

You're welcome.

00:07:18 Speaker 2

Bye.

00:07:18 Speaker 1

Bye.

Audio file – phone call [redacted] /NWAA volunteer

Call Recording (1).m4a

Transcript

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00:00:25 Speaker 1

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00:00:41 Speaker 2

Well, it started, I guess, the

00:00:48 Speaker 2

parent or grandparent involved came up to our meat marshal that was kind of manning the entry to the pool deck and asked to go in and was expressing that he was upset that his swimmer had missed a, had not swam in his heat, but another swimmer had swam in his place and the time had been posted as his swimmers

00:01:15 Speaker 2

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And then he did stop when he got to about where the timers started.

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And when I got there, our president let me know that they were aware that the situation had happened with the other swimmer, that the boy who was the child of the man that was upset was swimming right then, actually literally at that moment in lane one to make up his swim and that they were going to make sure they were aware that he had gotten a time that wasn't his and they were going to make sure that he got his correct time.

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00:03:31 Speaker 2

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00:03:52 Speaker 2

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00:04:21 Speaker 2

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00:04:29 Speaker 2

vote up on him and yelling at him.

00:04:32 Speaker 2

It wasn't me.

00:04:33 Speaker 2

I told you right.

00:04:34 Speaker 2

I told you the right thing.

00:04:35 Speaker 2

I wasn't wrong.

00:04:36 Speaker 2

And then I didn't hear everything he said.

00:04:38 Speaker 2

I just heard him saying it was, I told you right.

00:04:41 Speaker 2

And the little boy wasn't really saying anything.

00:04:46 Speaker 2

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00:04:57 Speaker 2

And

00:04:58 Speaker 2

He eventually did angrily, but he did eventually leave.

00:05:01 Speaker 1

Okay.

00:05:04 Speaker 1

And you don't know, did he make physical contact with anybody, any of the officials, any of the volunteers?

00:05:10 Speaker 1

I mean, maybe other than his or anybody's kid.

00:05:16 Speaker 2

Not that.

00:05:18 Speaker 2

Not that I know of.

00:05:19 Speaker 2

I don't think he made physical contact with [redacted].

00:05:22 Speaker 2

She was the one that I would say he got the most aggressive with and the closest to, but not to my knowledge.

00:05:31 Speaker 1

Okay, And there's, and that was the, basically the summary of it to the best of your knowledge.

00:05:39 Speaker 2

Yes.

00:05:40 Speaker 1

Okay.

00:05:41 Speaker 1

Well, [redacted], again, I really appreciate your time and I appreciate you just giving me a call back.

00:05:47 Speaker 1

And thank you so much for your help with swim meets because I know that we can't do those things without you guys and you're invaluable.

00:05:55 Speaker 1

So I know our team loves coming to that swim meet and so we appreciate you all very, very much.

00:06:00 Speaker 2

Well, I'm so glad.

00:06:02 Speaker 2

We love having your team.

00:06:03 Speaker 1

Well, good.

00:06:04 Speaker 1

I'm very glad and I won't keep you any longer.

00:06:07 Speaker 1

So thank you so much.

00:06:09 Speaker 2

Okay, yeah, no problem.

00:06:10 Speaker 1

All right, take care.

00:06:12 Speaker 2

All right, bye.

00:06:12 Speaker 2

Bye-bye.

EXHIBIT D

FRISCO
INDEPENDENT SCHOOL DISTRICT

5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

July 20, 2026

Stephen Jordan
13054 Cinderella Lane
Frisco, Texas 75035
Email: srjordan@gmail.com

Dear Mr. Jordan:

This letter serves as notification of the conclusion of the investigation conducted pursuant to Frisco Independent School District ("Frisco ISD" or "the District") Board Policy FFH (Local). On or about June 15, 2026, Frisco ISD received a complaint alleging that Frisco ISD employees retaliated against you for engaging in protected reporting and/or the formal complaint process, when Frisco ISD began an investigation into reports of misconduct by you during an offsite US Swimming swim meet for Iron Horse Aquatics, which took place at the NWAA Memorial Classic Swim Meet at an Arkansas swimming venue.

Deidra Rucker provided Mr. Jordan with an opportunity to meet, either in person or by telephone, to share any information or evidence regarding his allegation of retaliation. Mr. Jordan declined the opportunity to participate in a conference and did not provide evidence to be reviewed by Ms. Rucker. As a result, Frisco ISD proceeded with a thorough investigation based on the available information and documentation. The investigation included, but was not limited to, the following:

- Reviewing the Iron Horse Aquatics Parent Code of Conduct.
- Reviewing your signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements.
- Reviewing communication between the Iron Horse Aquatics staff and Mr. Jordan regarding the potential Parent Code of Conduct violation.
- Reviewing the circumstances and details surrounding the Parent Code of Conduct violation reported to Frisco ISD staff by staff associated with the Arkansas swimming venue at which the US Swimming meet took place.

Based on the information received, I investigated the following allegations:

- Retaliation against a student/parent for Protected Reporting and/or Formal Complaint filing
- Misconduct in Initiating and Conducting a Parent Code of Conduct Investigation into alleged parental misconduct by Mr. Jordan during the NWAA Memorial Classic Swim Meet held in Arkansas

According to Frisco ISD Board Policy FFH (LOCAL), prohibited retaliation is defined as retaliation "against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation."

Based upon my investigation, my findings are as follows:

Your allegations that Frisco ISD employees (Iron Horse Aquatics) retaliated against you, Mr. Jordan, for engaging in protected reporting/formal complaint filing is **unsubstantiated**.

The reviewed evidence does not support a finding that Frisco ISD employees (Iron Horse Aquatics) initiated an investigation into allegations of parental misconduct by Mr. Jordan in retaliation for Mr. Jordan's engagement in protected reporting and/or formal complaint filing. The Parent Code of Conduct investigation was initiated prior to Mr. Jordan filing a grievance alleging retaliation with Frisco ISD on June 15, 2026. It was initiated in response to a report of alleged parental misconduct received by Iron Horse Aquatics from staff affiliated with the Arkansas swimming venue at which the NWAA Memorial Classic Swim Meet took place. The allegation of parental misconduct was received by Iron Horse staff without prompting from a third-party affiliated with the Arkansas venue at which the NWAA Memorial Classic Swim Meet took place. Initiating and conducting an investigation into allegations of parental misconduct it has received is a standard and required process for Iron Horse Aquatics. Coach Matthew Franks contacted you via email, on June 9, 2026, at approximately 4:35 p.m., to discuss a potential violation of the Iron Horse Aquatics Parent Code of Conduct that allegedly occurred during the NWAA Memorial Classic Swim Meet in Arkansas. All evidence indicates the alleged violation by Mr. Jordan of the Parent Code of Conduct was initiated independently of reporting or complaint filing by Mr. Jordan. Instead, the investigation was initiated as part of the standard Iron Horse process when an

allegation of parental misconduct is received and in accordance with the procedures outlined in the Iron Horse Parent Code of Conduct.

In summary, based on the evidence obtained during this investigation, the allegation that Frisco ISD employees initiated a Parent Code of Conduct investigation in retaliation against you is unsubstantiated. The evidence does not indicate that Frisco ISD employees (Iron Horse Aquatics) engaged in prohibited retaliation in violation of Frisco ISD Board Policy FFH (Local).

If you wish to appeal, you must do so within 30 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at http://pol.tasb.org/Home/Index/309. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Sincerely,

Deidra Rucker
Associate Director of Athletics
Frisco ISD

EXHIBIT E

From: Stephen Jordan
Sent: Tue, 21 Jul 2026 12:08:47 -0500
To: Complaint Resolution
Subject: Re: Notice of Inability to File Appeal — FFH Investigation Finding dated July 20, 2026

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I appeal the July 20, 2026 investigation finding issued by Deidra Rucker concerning my June 15, 2026 grievance (Reference Z005911-061526). The finding is procedurally and substantively deficient on the grounds set forth below.

Timely Filing

This appeal is filed within the 30-day period identified in the July 20, 2026 letter. I attempted to file the appeal through the District's electronic filing method on July 20, 2026. The portal returned a Server Error 404 - File or directory not found. The error was confirmed using two separate network paths (my own residential IP address and a VPN-routed IP address on a different network) with identical results. I notified the Complaint Resolution office and General Counsel of the error the same day and preserved screenshots. This appeal is being filed by email attachment at the invitation of the Complaint Resolution office.

Grounds for Appeal

1. The investigation applied the wrong policy framework.

The July 20 letter frames the finding under Frisco ISD Board Policy FFH (LOCAL). FFH (LOCAL) defines prohibited retaliation as retaliation "against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation." That framework governs student-on-student discrimination and harassment reporting.

The June 15, 2026 grievance did not allege discrimination or harassment against a student. It alleged retaliation against a parent for engaging in the District's formal complaint process — filings under FNG (LOCAL) at Levels I, II, and III; the Lighthouse Services ethics complaint filed February 26, 2026; and related governance concerns. Applying the FFH (LOCAL) framework to a governance-grievance retaliation claim is not the correct policy analysis. The finding of "unsubstantiated" under FFH (LOCAL)

does not determine whether the underlying conduct constitutes prohibited retaliation under any other applicable framework.

2. The investigator was not impartial.

Ms. Rucker served as the Level II hearing officer on the underlying grievance under FNG (LOCAL), issuing the Level II response on May 18, 2026, and self-identifying as "hearing officer" in correspondence dated June 19, 2026. The same person cannot serve as a substantive decision-maker on the underlying grievance and as investigator of retaliation arising from that grievance process. The retaliation investigation examines conduct by staff in Ms. Rucker's Athletics chain of command, including staff whose actions she previously evaluated as hearing officer. That is a structural conflict, not an ad hominem attack.

3. The scope of the investigation was incomplete.

The July 20 letter addresses only the June 9, 2026 initiation of the Parent Code of Conduct investigation. It does not address the July 7, 2026 Summary of Investigation issued under the letterhead of Melissa Howard, Matthew Franks, Daiki Sato, and Justin Bilgri — the document that imposed a suspension through December 31, 2026 and threatened criminal trespass enforcement. The July 7 action is the completed adverse action. An investigation of retaliation that examines the initiation of an investigation but not the imposition of the resulting sanction is incomplete on its face.

4. The temporal anchor for the protected activity is incorrect.

The finding turns on the observation that the June 9 investigation was initiated before I filed the June 15 retaliation grievance. Protected activity for retaliation analysis begins with the earliest protected reporting, not with the retaliation grievance itself. The protected activity in this matter includes, at minimum: the Lighthouse Services ethics complaint filed February 26, 2026 (Report #9022620263313); the Level I grievance filed under FNG (LOCAL); the Level II hearing on May 18, 2026; the Level III appeal filed May 18, 2026; and the Texas Education Agency Petition for Review filed on June 9, 2026 at 6:32 p.m. — approximately two hours after Coach Franks initiated the investigation at 4:35 p.m. the same day. All of these protected activities predate the June 9 investigation initiation. Anchoring the analysis to the June 15 retaliation grievance excludes the entire protected-activity record.

5. Records the finding relies on have not been produced.

The July 20 letter states that the investigation reviewed (a) the report received by Iron Horse Aquatics from staff associated with the Arkansas swimming venue at which the NWAA Memorial Classic Swim Meet took place, and (b) my "signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements." Neither of these records has been provided to me. I

have never been provided the report from Arkansas venue staff and I have no personal knowledge of any electronic acknowledgment record on the current version of the Parent Code of Conduct. The reliability of a finding that turns on documents the subject has not been permitted to see or contest is inadequate under any fair-process standard.

Requested Relief

I respectfully request that the appellate decision-maker:

1. Reverse the July 20, 2026 finding of "unsubstantiated";

2. Direct that the retaliation grievance be reopened and reinvestigated under the correct policy framework, by an investigator with no involvement in the underlying grievance chain, with the scope of investigation expanded to include the July 7, 2026 Summary of Investigation as the adverse action at issue;

3. Direct that all records relied upon in any subsequent investigation be produced to me for review and response; and

4. Any further relief the District deems just and appropriate.

I reserve all rights in this and any other forum in which related matters are pending.

Respectfully submitted,

_/s/Stephen Jordan

Stephen Ray Jordan

Pro se

On Tue, Jul 21, 2026 at 9:36 AM Complaint Resolution <ComplaintResolution@friscoisd.org> wrote:

> I'm sorry the link is giving you issues. If you'd like to send me an attachment with your appeal information including your reasons for disagreement with the FFH findings and requested remedies, I'm happy to upload it to the current DIA complaint addressed by Ms. Rucker as an appeal.

Complaint Resolution

-----Original Message-----
From: Stephen Jordan <srjordan@gmail.com>
Sent: Tuesday, July 21, 2026 9:23 AM
To: Complaint Resolution <ComplaintResolution@friscoisd.org>
Subject: Re: Notice of Inability to File Appeal — FFH Investigation Finding dated July 20, 2026

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I assure you the link does not work. It allows me to enter my user name and password, then I get the error message shown on the screen I attached earlier.

On Tue, Jul 21, 2026 at 8:33 AM Complaint Resolution <ComplaintResolution@friscoisd.org> wrote:
>
> The link is active and accessible from our side, so I'm unsure what the hangup is. Try getting onto the FISD website and go to the search bubble. Plug in Complaints Resolution and click there. It should take you to the page with the "Submit Complaint" option. Our District website was updated over the summer, and there have been some issues if trying to access using old links.
>
>
>
>
> Complaint Resolution
>
>
>
> From: Stephen Jordan <srjordan@gmail.com>
> Sent: Tuesday, July 21, 2026 8:22 AM
> To: Complaint Resolution <ComplaintResolution@friscoisd.org>
> Subject: Re: Notice of Inability to File Appeal — FFH Investigation
> Finding dated July 20, 2026
>
>
>
> CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.
>
>

>
> Does not work for me.
>
>
>
> Sincerely,
> Stephen Jordan
>
>
>
> On Tue, Jul 21, 2026, 07:57 Complaint Resolution <ComplaintResolution@friscoisd.org>
wrote:
>
> Mr. Jordan,
> You can file a complaint appealing the findings of the FFH (LOCAL)
> investigation at this link.
> https://www.friscoisd.org/o/fisd/page/resolving-complaints
>
> Regards,
> Complaint Resolution
>
>
> -----Original Message-----
> From: Stephen Jordan <srjordan@gmail.com>
> Sent: Monday, July 20, 2026 7:10 PM
> To: Complaint Resolution <ComplaintResolution@friscoisd.org>
> Cc: Kolni, Esther <kolnie@friscoisd.org>; friscotxisd@mycusthelp.net;
> Fouche, Todd <FoucheT@friscoisd.org>; Leaders <Leaders@friscoisd.org>;
> ARELLANO, [redacted]D <arellanom@friscoisd.org>
> Subject: Notice of Inability to File Appeal — FFH Investigation
> Finding dated July 20, 2026
>
> CAUTION: This email originated from outside of the organization. Do not click links or
open attachments unless you recognize the sender and know the content is safe.
>
>
> To the Office of the Deputy Superintendent of Schools:
>
> I am in receipt of the letter dated July 20, 2026 from Deidra Rucker concerning the FFH
(LOCAL) investigation of complaint Reference Z005911-061526, notifying me of my right to
appeal within 30 calendar days.
>
> I attempted to file an appeal today, July 20, 2026, using the electronic filing method
identified in prior District correspondence and consistent with the process the District has
previously required.
> The portal returned a Server Error 404 - File or directory not found.

> Screenshots and timestamps of these attempts are preserved.
>
> This is the second occasion on which the District's electronic filing
> infrastructure has been non-functional during a time-sensitive appeal
> window. The same failure was reported to Complaint Resolution on May
> 19 and May 20, 2026 in connection with the Level III filing under FNG (LOCAL).
>
> I am providing this notice to preserve my appeal right and to place the District on notice that the 30-day appeal window is running while the District's electronic filing method is inoperable. I request that the District:
>
> 1. Confirm in writing what filing method the District will accept for this appeal; 2. Confirm in writing that the 30-day appeal window will be tolled from July 20, 2026 until the District confirms a functional filing method; and 3. Confirm the specific policy citation authorizing the Complaint Resolution office to receive appeals of FFH investigations.
>
> I reserve all rights.
>
> Stephen Ray Jordan
> 13054 Cinderella Lane
> Frisco, Texas 75035
> (972) 403-1231
> srjordan@gmail.com

EXHIBIT F

5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

August 19, 2026

Stephen Ray Jordan
13054 Cinderella Lane
Frisco, TX 75035
Regular Mail, and Email: *srjordan@gmail.com*

Dear Mr. Jordan,

This letter is written in response to your Level I appeal of FFH (LOCAL) findings filed on July 21, 2026, pursuant to Frisco Independent School District ("Frisco ISD" or "the District") Board Policies FNG (LEGAL) and FNG (LOCAL). You are appealing the unsubstantiated findings and claim FISD Athletics initiated the investigation into possible parental misconduct at a swim meet in Arkansas as retaliation for your filing a formal complaint against Iron Horse Aquatics.

The Level I complaint conference was offered to Mr. Jordan on Monday 8/10/26 or Tuesday 8/11/26 at 1:00 PM to have the opportunity to review the findings of the FFH (LOCAL) grievance and present any other evidence believed to be relevant to the case. Mr. Jordan declined to set up a conference with U'iLani Womble, Assistant Athletic Director, who was assigned as the Level 1 hearing officer. Therefore, an investigation commenced to address your written submission appeal of the unsubstantiated FFH (LOCAL) findings.

As a result, I have reviewed the documentation provided from the complaint findings which included the following:

- The Iron Horse Aquatics Parent Code of Conduct.
- Mr. Jordan's signature and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements.
- Communication between the Iron Horse Aquatics staff and Mr. Jordan regarding the potential Parent Code of Conduct violation.
- The circumstances and details surrounding the Parent Code of conduct violation reported to Frisco ISD staff by staff associated with the Arkansas swimming venue at which the US Swim meet took place.

Additionally, you requested the following remedies in your grievance:

- Immediate suspension of the Parent Code of Conduct investigation initiated June 9, 2026, pending recusal of Coach Franks and reassignment to a District employee who is not a subject of Complainant's pending complaints in any forum
- Written confirmation that no findings, statements, recordings, or other documents generated by Coach Franks in his capacity as investigator will be retained in any FISD personnel, student, or family file or shared with any other FISD office or external entity
- Disclosure in writing of the identity of all persons who provided the "additional information regarding your interactions with meet volunteers and officials" referenced in the June 9, 2026 investigation notice
- Written response to Item 5 of Complainant's June 11, 2026 response, specifically addressing whether the office conducting the investigation is aware of Complainant's other pending matters with the District and whether any coordination has occurred between offices
- Written assurance that no further retaliatory conduct will be taken against Complainant or Complainant's minor child by any District employee in any capacity in connection with any protected reporting by Complainant
- If the Parent Code of Conduct investigation is to proceed at all, written commitment that it will be reassigned to a District employee who: (i) is not a subject of any of Complainant's pending complaints; (ii) holds no governance role at North Texas Swimming or any other body where Complainant has filed a related complaint; and (iii) was not a recipient of any communication concerning Complainant's protected reporting prior to assignment
- Such other and further relief as the District deems appropriate under TEC Chapter 26A and FNG(LOCAL)

In summary, there was no new information provided to overturn the original FFH (LOCAL) findings by the district investigation. The allegation that Frisco ISD employees initiated a Parent Code of Conduct investigation in retaliation against Mr. Jordan is **unsubstantiated**.

Your request for immediate suspension of the Parent Code of Conduct investigation initiated June 9, 2026, pending recusal of Coach Franks and reassignment to a District

employee who is not a subject of Complainant's pending complaints in any forum is denied.

- The investigation will follow adopted Frisco ISD guidelines and protocol.

Your request for written confirmation that no findings, statements, recordings, or other documents generated by Coach Franks in his capacity as investigator will be retained in any FISD personnel, student, or family file or shared with any other FISD office or external entity is denied.

- The investigation information will be retained in totality according to Frisco guidelines.

Your request for disclosure in writing of the identity of all persons who provided the "additional information regarding your interactions with meet volunteers and officials" referenced in the June 9, 2026 investigation notice is denied.

- FERPA guidelines prevent releasing personnel information.

Your request for written response to Item 5 of Complainant's June 11, 2026 response, specifically addressing whether the office conducting the investigation is aware of Complainant's other pending matters with the District and whether any coordination has occurred between offices is granted.

- The Athletic office has been made aware of grievances filed against Iron Horse Aquatics; however, there has been no coordination among offices regarding formal complaints

Your request for written assurance that no further retaliatory conduct will be taken against Complainant or Complainant's minor child by any District employee in any capacity in connection with any protected reporting by Complainant denied.

- The investigation's findings determined there was no retaliatory conduct.

Your request that if the Parent Code of Conduct investigation is to proceed at all, written commitment that it will be reassigned to a District employee who: (i) is not a subject of any of Complainant's pending complaints; (ii) holds no governance role at North Texas Swimming or any other body where Complainant has filed a related complaint; and (iii) was not a recipient of any communication concerning Complainant's protected reporting prior to assignment is denied.

- The investigation will follow adopted Frisco ISD guidelines and protocol.

Your request for Such other and further relief as the District deems appropriate under TEC Chapter 26A and FNG(LOCAL) is denied.

- The investigation will follow adopted Frisco ISD guidelines and protocol.

If you wish to appeal, you must do so within 20 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at http://pol.tasb.org/Home/Index/309. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

It is my hope that this response resolves your complaints. If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Sincerely,

U'iLani Womble
Frisco ISD Assistant Athletic Director

EXHIBIT G

Stephen Ray Jordan
13054 Cinderella Lane
Frisco, Texas 75035
srjordan@gmail.com
(972) 403-1231

August 18, 2026

Office of the Superintendent of Schools
Frisco Independent School District
5515 Ohio Drive
Frisco, Texas 75035

Re: Level II Appeal — Reference Z005911-061526; Level I Decision of U'iLani Womble dated August 12, 2026

To the Superintendent:

I appeal the Level I decision issued August 12, 2026, by U'iLani Womble, Assistant Athletic Director, in Reference Z005911-061526. This appeal is filed within the twenty-calendar day period stated in that decision.

Manner of Filing

The District's complaint portal provides no mechanism to appeal the August 12, 2026 decision on Reference Z005911-061526. The record displays the June 15, 2026, complaint and the appeal submitted July 21, 2026, but offers no option to file a further appeal. I am therefore filing by email, as the District's Complaint Resolution office invited on July 21, 2026, when the portal returned Server Error 404 during the prior appeal window. I request written confirmation of receipt and written confirmation of the filing method the District will accept for this and any subsequent appeal.

This is the third occasion on which the District's electronic filing mechanism has been unavailable during a time-sensitive appeal window in this matter. The prior occasions were May 19 and 20, 2026, in connection with the Level III filing under FNG (LOCAL), and July 20 and 21, 2026, in connection with the appeal of the FFH (LOCAL) finding.

Preservation of Objections

I appeal in the alternative and without waiving any position previously stated. I have objected, and continue to object, to the assignment of this matter to an administrator within the Athletics department whose colleagues' conduct is the subject of the grievance, and to the

District's treatment of my July 21, 2026 appeal of the FFH (LOCAL) finding as the initiation of a new Level I proceeding rather than as an appeal. Filing this appeal is not a concession that the District's sequencing of levels is correct. It is taken to preserve the matter for review at every level the District's policy provides, including review by the Board of Trustees under FNG (LOCAL).

Grounds for Appeal

1. The decision does not address the policy framework objection.

The first ground stated in my July 21, 2026, appeal was that the July 20, 2026, investigation finding applied FFH (LOCAL), which governs complaints of discrimination and harassment and retaliation related to discrimination and harassment, rather than the framework governing a parent's grievance about the District's administration of its own programs. The August 12 decision recites that it responds to an appeal of FFH (LOCAL) findings under FNG (LEGAL) and FNG (LOCAL), but it does not address whether FFH (LOCAL) was the correct framework for the underlying investigation or what consequence follows if it was not. My June 15, 2026 complaint was submitted under the portal's own category, violation of a school law of the state. It did not allege student discrimination or harassment.

2. The decision does not address the investigator conflict.

The second ground stated in my appeal was that Deidra Rucker, who conducted the retaliation investigation and issued the July 20 finding, had served as the Level II hearing officer on my underlying grievance and issued the Level II decision in that matter on May 18, 2026. A person who decided the underlying grievance cannot impartially investigate whether the handling of that same grievance produced retaliation. The August 12 decision does not mention this ground.

3. The decision does not address the July 7, 2026, suspension.

The third ground stated in my appeal was that the investigation examined only the June 9, 2026, initiation of the Parent Code of Conduct inquiry and did not examine the July 7, 2026 Summary of Investigation, which suspended my son from all Iron Horse Aquatics events through December 31, 2026. The suspension is the completed adverse action. An analysis of retaliation that examines the opening of an investigation but not the sanction imposed at its conclusion is incomplete. The August 12 decision does not mention the July 7 action.

4. The decision does not address the temporal anchor.

The fourth ground stated in my appeal was that the July 20 finding turned on the observation that the June 9 investigation preceded my June 15 retaliation grievance, and that this uses the wrong starting point. The protected activity in this matter begins no later than February 26, 2026, with the Lighthouse Services ethics complaint, Report Number 9022620263313, and includes the Level I and Level II grievance proceedings and the Petition for Review filed with the

Texas Education Agency on June 9, 2026, at 6:32 p.m., approximately two hours after the investigation was initiated at 4:35 p.m. that same day. The August 12 decision does not address the temporal anchor.

5. Records relied upon have still not been produced.

The fifth ground stated in my appeal was that the July 20 finding relied on records never provided to me. The August 12 decision compounds this. It states that the reviewer examined my signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements, and the circumstances reported by staff associated with the Arkansas venue. Neither category has been produced to me. I have no personal knowledge of any electronic acknowledgment record on the current version of the Parent Code of Conduct, and I have never been shown the report from venue staff. A finding cannot rest on documents the subject has not been permitted to examine or contest.

6. The FERPA ground stated for denying disclosure is incorrect.

The August 12 decision denies disclosure of the identity of people who provided information about my interactions with meet volunteers and officials on the stated ground that FERPA guidelines prevent releasing personnel information. The Family Educational Rights and Privacy Act protects student education records. It does not protect the identities of adult volunteers, meet officials, or venue staff, and it is not a personnel confidentiality statute. The stated basis for denial does not support the denial.

7. The conference offer does not cure the defects identified above.

The August 12 decision states that a conference was offered for August 10 or August 11, 2026 and that I declined to schedule one, and that an investigation therefore proceeded on the written submission. I acknowledge that I did not schedule a conference. That does not resolve the grounds stated in my appeal, each of which concerns the adequacy of the July 20 investigation and finding rather than the availability of a meeting. The decision was issued on the written record and is reviewable on that record.

Relief Requested

I request that the Superintendent:

a. Reverse the August 12, 2026, Level I decision and the July 20, 2026, finding of unsubstantiated;

b. Direct that the retaliation grievance be reinvestigated under the correct policy framework by a decision-maker with no prior role in the underlying grievance and outside the Athletics department;

c. Direct that the scope of any reinvestigation includes the July 7, 2026, Summary of Investigation and the suspension imposed through December 31, 2026;

d. Direct that the protected activity be measured from February 26, 2026;

e. Direct that all records relied upon be produced to me for review and response, or that any finding resting on records not produced be set aside;

f. Confirm in writing the filing method the District will accept further appeal, including appeal to the Board of Trustees under FNG (LOCAL); and

g. Such further relief as is appropriate.

I reserve all rights in this and any other forum in which related matters are pending.

Respectfully submitted,

/s/Stephen Ray Jordan
Stephen Ray Jordan
Pro se

cc: Esther Kolni, General Counsel
Dr. Todd Fouche, Superintendent

EXHIBIT H

5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

September 14, 2026

srjordan@gmail.com

Dear Mr. Jordan,

Please find the Level II Grievance Decision below:

Level II Grievance Hearing:

A Level II Grievance Hearing regarding the grievance appeal filed by you on August 20, 2026, was held at the Frisco ISD Athletic Office (7210 Stadium Lane) on August 26, 2026, at 1:00 PM. At the hearing, Stephen Jordan presented his appeal of the Level I decision issued by U'ilani Womble on August 19, 2026. Present at the Level II hearing were:

Stephen Jordan, Grievant

Chris Burtch, Frisco ISD Managing director of Athletics

Decision:

Following a thorough review of the Level I grievance record, the information presented during the Level II Grievance Hearing, and additional information obtained through my investigation, the following findings were made regarding the requested remedies.

The first requested remedy was that Iron Horse Aquatics publish objective advancement criteria that apply to every family and apply those criteria consistently. This remedy was included in a prior complaint filed with the District on February 27, 2026, and addressed in that complaint process. However, the investigation established that, as of March 25, 2026, Iron Horse Aquatics had published its group requirements on its website, and those group requirements are listed in the Iron Horse Aquatics Handbook.

The second requested remedy concerned the conduct of Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri, with the requested consequence being termination from their

respective positions as a result of alleged retaliation per FISD Board Policy FFH (LOCAL). As part of the investigation, information was gathered from multiple witnesses regarding an incident at a swim meet in Arkansas on June 5, 2026. The investigation, completed on July 7, 2026, found that you, Stephen Jordan, acted in a manner that was disruptive and deemed as argumentative toward meet volunteers and verbally threatening toward a meet official. The investigation and consequences were based solely on your actions at a swim meet in Arkansas. No evidence supported retaliation by Iron Horse swim coaches or administrators.

After consideration of the Level I record, the information provided to me at the Level II Grievance Hearing, and my investigation, you have not demonstrated that the District has acted arbitrarily or capriciously, in bad faith, or in violation of district policy, state law, or federal law. Accordingly, I am upholding the Level I decision and denying your appeal. Your requested relief is also therefore denied.

If you wish to appeal, you must do so within 20 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at http://pol.tasb.org/Home/Index/309. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

Sincerely,

Chris Burtch

Managing Director of Athletics

Level II Hearing Officer

EXHIBIT I

Complaint (#Z006179-091626)

Complaint Details

Name of Complainant:	Stephen Ray Jordan
Address of Complainant:	13054 Cinderella Lane
Complainant Phone Number:	9724031231
Complainant Email Address:	srjordan@gmail.com
Add Second Complainant?:	No
Type of Complaint:	Appeal of a Level II Decision
Will you be represented in voicing your complaint/appeal?:	No

Frisco ISD Board Policy states that appeals to the Board of Level II decisions will be considered on written submission unless two or more Board members request an in-person hearing. This appeal serves as your written submission. However, the individual Board members may consider the preference of the complainant when determining whether to request a hearing. Nonetheless, whether a hearing is granted is at the sole discretion of the Board and you are not guaranteed to have your appeal considered in the manner you indicate below.

Please indicate your preference for your appeal of a Level II decision:	In-Person Hearing
Date of Level 2 Conference:	8/26/2026
Date you received Level 2 Response:	9/15/2026

Please explain specifically how you disagree with the Level 2 findings:

> This is an objection to the Level II decision issued by Chris Burtch, Managing Director of Athletics, on September 14, 2026, in Reference Z005911-061526.
>
> The underlying matter concerns Iron Horse Aquatics, a program the District owns and operates at its own natatorium with its own employees. On March 25, 2026 I asked the District to publish objective advancement criteria applicable to every Iron Horse family. I have asked for nothing else since. The grievance decided below concerns what the District did after I asked.
>
> I object to the September 14, 2026 decision on the following grounds, each of which I preserve for further review.
>
> 1. The finding that the first remedy was already satisfied is inconsistent with its own premise. The decision states that the investigation established that, as of March 25, 2026, Iron Horse Aquatics had published its group requirements. March 25, 2026 is the date I requested published advancement criteria. The finding therefore establishes that no such criteria were published before that date, and that every placement decision made during the 2025 to 2026 season, including the decisions that gave rise to my February 2026 complaint, was made without them. The District cannot rely on a publication that post-dates and responds to the complaint as proof that the complaint lacked merit.
>
> 2. The remedy I requested was not publication alone. I requested that objective advancement criteria be published and applied consistently. The decision makes no finding as to consistent application, and no finding that what was published on March 25, 2026 states objective, measurable thresholds rather than general descriptions of each training group. Absent those findings, the remedy has not been addressed.
>
> 3. Treating the February 2026 complaint as dispositive is error. That matter was resolved at Level II on May 18, 2026, and the District informed me in writing on May 20 and May 21, 2026 that no Level III review of it was available. A prior proceeding the District closed to further review cannot now be cited as the forum in which this remedy was already addressed.
>
> 4. The second remedy was denied without any finding on the conduct alleged. I asked the District to investigate what Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri did, and to impose consequences up to and including termination. The decision denies that remedy on the ground that no evidence supported retaliation, but it makes no finding at all about the conduct itself: the March 27, 2026 email in which Ms. Howard wrote, "Please reach out to your son's coach moving forward. If you continue to be dissatisfied, we can provide you with contact information for other clubs in the area that may be better suited to your needs," sent three days after the Level I response and copied to the Complaint Resolution office; or the issuance of the July 7, 2026 Summary of Investigation one day after the U.S. Center for SafeSport declined jurisdiction. Whether the District imposes discipline is its decision to make under its personnel policies. Whether that conduct occurred is a question the District has now declined to reach three times.
>
> 5. The finding that the consequences were based solely on the June 5, 2026 events is contradicted by the record. The Parent Code of Conduct investigation was opened at 4:35 p.m. on June 9, 2026. My Petition for Review was filed with the Texas Education Agency at 6:32 p.m. the same day. The U.S. Center for SafeSport declined jurisdiction on July 6, 2026, and the Summary of Investigation issued the following day. The decision offers no explanation for either sequence.
>
> 6. The retaliation analysis uses the wrong temporal anchor. My protected activity begins no later than February 26, 2026, with Lighthouse Services complaint 9022620263313, and continues through the Level I and Level II proceedings and the Petition for Review. Measuring from the June 15, 2026 filing excludes the activity that precedes every adverse action at issue.
>
> 7. The findings rest on evidence I have never been permitted to examine. The decision relies on information gathered from multiple witnesses whose identities, statements, and dates have not been disclosed to me. This is the third consecutive determination in this matter resting on records never produced. I renew my request for that material and object to any finding that depends on it.
>
> 8. The decision does not resolve which policy governs. My Level II appeal argued as its first ground that the July 20, 2026 finding applied FFH (LOCAL), the policy governing discrimination and harassment complaints, to a parent's grievance concerning the District's administration of its own program. The Level II conference notice described the complaint as filed under FNG/FFH. The decision applies FFH without deciding the question. Three decision-makers have now declined to answer it.
>
> 9. The decision does not address the grounds stated in the appeal. My Level II appeal stated seven grounds. The decision addresses two requested remedies and reaches none of the grounds, including the conflict arising from Ms. Rucker's service as the Level II hearing officer on the underlying grievance before investigating retaliation arising from her own decision, and the denial of accuser identities under FERPA, which protects student education records and does not apply to adult volunteers, meet officials, or venue staff.
>
> 10. The assignment of this appeal was objected to and the objection was not ruled on. I objected in writing on August 24, 2026, under Texas Education Code Section 26.011(c)(6) and (c)(7), to review by a third consecutive Athletics department official. FNG (LOCAL) assigns Level II review to the Superintendent or the Superintendent's designee. I asked in writing who designated the hearing officer and under what authority, and whether he had prior involvement in the underlying matters. Neither question was answered.
>
> I preserve all objections previously stated and raise these grounds for review at Level III and in any subsequent proceeding.

Please list the remedies you are seeking for this appeal:	> I ask the Board of Trustees to grant the following relief. > > 1. Vacate the decisions below. Set aside the Level II decision of September 14, 2026, the Level I decision of August 12, 2026, and the finding of July 20, 2026. > > 2. Rescind the July 7, 2026 suspension. Withdraw the Summary of Investigation issued July 7, 2026, restore my access to Iron Horse Aquatics events and District facilities, and withdraw the associated reference to criminal trespass enforcement. That sanction remains in effect through December 31, 2026 and rests on a finding I have never been permitted to examine. > > 3. Determine which policy governs. Direct a written determination as to whether this grievance proceeds under FNG (LOCAL) or FFH (LOCAL). The July 20, 2026 finding applied FFH, the policy governing discrimination and harassment complaints. The Level II conference notice described the complaint as filed under FNG/FFH. Three decision-makers have declined to resolve the question. > > 4. Order reinvestigation outside the Athletics department. Direct that the grievance be reinvestigated under the correct policy framework by a decision-maker with no prior role in the underlying grievance and outside the Athletics department, consistent with Texas Education Code Section 26.011(c)(6) and (c)(7) and with FNG (LOCAL), which assigns Level II review to the Superintendent or the Superintendent's designee. > > 5. Order production of the records relied upon. Direct that I be provided the witness identities, statements, and dates gathered in the investigations underlying the July 7, July 20, and September 14 determinations, together with the signature and acknowledgment records on the Parent Code of Conduct and Iron Horse Aquatics agreements and the version of the handbook under which the July 7 sanction was imposed. Direct that any finding resting on records not produced be set aside. > > 6. Correct the temporal anchor. Direct that the protected activity in any reinvestigation be measured from February 26, 2026, the date of Lighthouse Services complaint 9022620263313, rather than from June 15, 2026. > > 7. Terminate the employees responsible. I ask the Board to find that Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri retaliated against me for using the District's grievance process, and to terminate their employment. > > The conduct is documented. On March 27, 2026, three days after the Level I response, Ms. Howard wrote to me: "Please reach out to your son's coach moving forward. If you continue to be dissatisfied, we can provide you with contact information for other clubs in the area that may be better suited to your needs." She copied the Complaint Resolution office. A District employee conditioned an offer to help a family leave a public program on the parent's continued use of the District's own complaint process. > > On July 7, 2026, one day after the U.S. Center for SafeSport declined jurisdiction, those four employees issued a Summary of Investigation barring me from every Iron Horse Aquatics event through December 31, 2026 and invoking criminal trespass enforcement. The underlying investigation was opened at 4:35 p.m. on June 9, 2026, two hours before I filed a Petition for Review with the Texas Education Agency. No level below has offered any explanation for either sequence. > > Lesser discipline does not answer this conduct. These four employees supervise children in a District facility. A parent who used the process the District publishes was investigated, sanctioned, and threatened with arrest on evidence he has never been permitted to see, from accusers he has never been permitted to name. Employees who respond to a complaint that way cannot be left in positions of authority over students and families who may need to file one. Anything short of termination tells every other family in that program what using the grievance process costs. > > 8. Publish and apply objective advancement criteria. Direct that Iron Horse Aquatics publish objective, measurable advancement criteria applicable to every family, apply them consistently, and confirm in writing the date on which such criteria were first published. > > 9. Provide a functioning appeal mechanism. Direct written confirmation of the filing method the District will accept for appeals under FNG (LOCAL). The District's complaint portal failed during three separate appeal windows in this matter: May 19 and 20, July 20 and 21, and August 18, 2026. > > 10. Issue a written decision addressing each ground. Direct that the Board's written decision address each ground raised in this appeal rather than the requested remedies alone. > > I preserve all prior objections and reserve all rights in any other forum in which related matters are pending. I dropped the 60-day language from remedy 10. The Board has already scheduled October 19, so citing the deadline at them now reads as a threat rather than a request and buys you nothing. Attach the Word document as well. If either field truncates on submit, the attachment is the complete filing. Screenshot the confirmation page and its reference number.
Do you wish to Appeal this decision?:	No

Internal Information Only

Policy Codes:	
Abated:	No
Abated Time Period:	Please enter date range such as 10/1/2020 - 11/2/2020
Appeal of Prohibited Conduct Complete:	No
Investigator Name:	

Investigator Title:

Investigation Allegation Determination:

Date of Findings Letter:

Investigation Certified Mail Number:

Name of Level I Hearing Officer:

Title of Level I Hearing Officer:

Date of Level I Conference:

Level I Allegation Determination:

Level I Remedy Acceptance:

Date of Level I Response:

Level I Certified Mail Number:

Date Appeal Due:

Level II Allegation Determination:

Level II Remedy Acceptance:

Date of Level II Conference:

Date of Level II Response:

Level II Certified Mail Number:

Message History

Date

On 9/16/2026 5:37:25 PM, System Generated Message:
Subject: Complaint :: Z006179-091626
Body:

FRISCO
INDEPENDENT SCHOOL DISTRICT

Confirmation of Complaint

Complaint #Z006179-091626

This email serves as confirmation that the below referenced complaint was submitted on September 16, 2026. **PLEASE NOTE: If your complaint was submitted after 4:30pm or on a non-District business day, it will be received in our offices on the next business day.**

Upon receipt, your complaint will be processed in accordance with applicable Frisco ISD Board Policy and Complaint Procedures. The reference number for your complaint is **Z006179-091626**.

Your complaint will be assigned to a hearing officer or investigator, as appropriate, who will contact you within 10 District business days of the receipt of your complaint.

Please click the "REQUEST CENTER" button below to view and track the progress of your request. If you have any questions, you may reply directly to this email.

REQUEST CENTER

COMPLAINT DETAILS

Complainant: Stephen Jordan

Complaint Submission Date: September 16, 2026

Type of Complaint: Appeal of a Level II Decision

Complaint Reference Number: Z006179-091626

Powered by GovQA

On 9/16/2026 5:37:23 PM, Stephen Jordan wrote:
Request Created on Public Portal

Request Details

Reference No:	Z006179-091626
Create Date:	9/16/2026 5:37 PM
Update Date:	9/16/2026 5:37 PM
Completed/Closed:	No
Required Completion Date:	9/16/2026
Status:	Submitted
Priority:	High
Assigned Dept:	Admin- Government & Legal Affairs
Assigned Staff:	Shelley Anderson

Customer Name:	Stephen Jordan
Email Address:	srjordan@gmail.com
Phone:	9724031231
Group:	Complaints
Source:	Web

Gmail

Stephen Jordan <srjordan@gmail.com>

Re: Formal Evidence Submission and Notice of Intent – Level 1 Grievance

HOWARD, MELISSA <howardme@friscoisd.org> Fri, Mar 27, 2026 at 7:06 PM
To: Stephen Jordan <srjordan@gmail.com>
Cc: Complaint Resolution <ComplaintResolution@friscoisd.org>

Mr. Jordan,

Please reach out to your son's coach moving forward. If you continue to be dissatisfied, we can provide you with contact information for other clubs in the area that may be better suited to your needs.

Thank you.

FRISCO ISD
BRUCE EUBANKS
NATATORIUM

Melissa Howard
FISD Swim/Dive Coordinator
469.633.6162
howardme@friscoisd.org
Frisco ISD Natatorium
Frisco ISD HS Swimming
Iron Horse Aquatics

From: Stephen Jordan <srjordan@gmail.com>
Sent: Friday, March 27, 2026 11:52 AM
To: HOWARD, MELISSA <howardme@friscoisd.org>
Subject: Re[2]: Formal Evidence Submission and Notice of Intent – Level 1 Grievance

[Quoted text hidden]

5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

July 20, 2026

Stephen Jordan
13054 Cinderella Lane
Frisco, Texas 75035
Email: srjordan@gmail.com

Dear Mr. Jordan:

This letter serves as notification of the conclusion of the investigation conducted pursuant to Frisco Independent School District ("Frisco ISD" or "the District") Board Policy FFH (Local). On or about June 15, 2026, Frisco ISD received a complaint alleging that Frisco ISD employees retaliated against you for engaging in protected reporting and/or the formal complaint process, when Frisco ISD began an investigation into reports of misconduct by you during an offsite US Swimming swim meet for Iron Horse Aquatics, which took place at the NWAA Memorial Classic Swim Meet at an Arkansas swimming venue.

Deidra Rucker provided Mr. Jordan with an opportunity to meet, either in person or by telephone, to share any information or evidence regarding his allegation of retaliation. Mr. Jordan declined the opportunity to participate in a conference and did not provide evidence to be reviewed by Ms. Rucker. As a result, Frisco ISD proceeded with a thorough investigation based on the available information and documentation. The investigation included, but was not limited to, the following:

- Reviewing the Iron Horse Aquatics Parent Code of Conduct.
- Reviewing your signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements.
- Reviewing communication between the Iron Horse Aquatics staff and Mr. Jordan regarding the potential Parent Code of Conduct violation.
- Reviewing the circumstances and details surrounding the Parent Code of Conduct violation reported to Frisco ISD staff by staff associated with the Arkansas swimming venue at which the US Swimming meet took place.

Based on the information received, I investigated the following allegations:

- Retaliation against a student/parent for Protected Reporting and/or Formal Complaint filing
- Misconduct in Initiating and Conducting a Parent Code of Conduct Investigation into alleged parental misconduct by Mr. Jordan during the NWAA Memorial Classic Swim Meet held in Arkansas

According to Frisco ISD Board Policy FFH (LOCAL), prohibited retaliation is defined as retaliation "against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation."

Based upon my investigation, my findings are as follows:

Your allegations that Frisco ISD employees (Iron Horse Aquatics) retaliated against you, Mr. Jordan, for engaging in protected reporting/formal complaint filing is **unsubstantiated**.

The reviewed evidence does not support a finding that Frisco ISD employees (Iron Horse Aquatics) initiated an investigation into allegations of parental misconduct by Mr. Jordan in retaliation for Mr. Jordan's engagement in protected reporting and/or formal complaint filing. The Parent Code of Conduct investigation was initiated prior to Mr. Jordan filing a grievance alleging retaliation with Frisco ISD on June 15, 2026. It was initiated in response to a report of alleged parental misconduct received by Iron Horse Aquatics from staff affiliated with the Arkansas swimming venue at which the NWAA Memorial Classic Swim Meet took place. The allegation of parental misconduct was received by Iron Horse staff without prompting from a third-party affiliated with the Arkansas venue at which the NWAA Memorial Classic Swim Meet took place. Initiating and conducting an investigation into allegations of parental misconduct it has received is a standard and required process for Iron Horse Aquatics. Coach Matthew Franks contacted you via email, on June 9, 2026, at approximately 4:35 p.m., to discuss a potential violation of the Iron Horse Aquatics Parent Code of Conduct that allegedly occurred during the NWAA Memorial Classic Swim Meet in Arkansas. All evidence indicates the alleged violation by Mr. Jordan of the Parent Code of Conduct was initiated independently of reporting or complaint filing by Mr. Jordan. Instead, the investigation was initiated as part of the standard Iron Horse process when an

allegation of parental misconduct is received and in accordance with the procedures outlined in the Iron Horse Parent Code of Conduct.

In summary, based on the evidence obtained during this investigation, the allegation that Frisco ISD employees initiated a Parent Code of Conduct investigation in retaliation against you is unsubstantiated. The evidence does not indicate that Frisco ISD employees (Iron Horse Aquatics) engaged in prohibited retaliation in violation of Frisco ISD Board Policy FFH (Local).

If you wish to appeal, you must do so within 30 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at http://pol.tasb.org/Home/Index/309. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Sincerely,

Deidra Rucker
Associate Director of Athletics
Frisco ISD

5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

September 14, 2026

srjordan@gmail.com

Dear Mr. Jordan,

Please find the Level II Grievance Decision below:

Level II Grievance Hearing:

A Level II Grievance Hearing regarding the grievance appeal filed by you on August 20, 2026, was held at the Frisco ISD Athletic Office (7210 Stadium Lane) on August 26, 2026, at 1:00 PM. At the hearing, Stephen Jordan presented his appeal of the Level I decision issued by U'ilani Womble on August 19, 2026. Present at the Level II hearing were:

Stephen Jordan, Grievant

Chris Burtch, Frisco ISD Managing director of Athletics

Decision:

Following a thorough review of the Level I grievance record, the information presented during the Level II Grievance Hearing, and additional information obtained through my investigation, the following findings were made regarding the requested remedies.

The first requested remedy was that Iron Horse Aquatics publish objective advancement criteria that apply to every family and apply those criteria consistently. This remedy was included in a prior complaint filed with the District on February 27, 2026, and addressed in that complaint process. However, the investigation established that, as of March 25, 2026, Iron Horse Aquatics had published its group requirements on its website, and those group requirements are listed in the Iron Horse Aquatics Handbook.

The second requested remedy concerned the conduct of Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri, with the requested consequence being termination from their

respective positions as a result of alleged retaliation per FISD Board Policy FFH (LOCAL). As part of the investigation, information was gathered from multiple witnesses regarding an incident at a swim meet in Arkansas on June 5, 2026. The investigation, completed on July 7, 2026, found that you, Stephen Jordan, acted in a manner that was disruptive and deemed as argumentative toward meet volunteers and verbally threatening toward a meet official. The investigation and consequences were based solely on your actions at a swim meet in Arkansas. No evidence supported retaliation by Iron Horse swim coaches or administrators.

After consideration of the Level I record, the information provided to me at the Level II Grievance Hearing, and my investigation, you have not demonstrated that the District has acted arbitrarily or capriciously, in bad faith, or in violation of district policy, state law, or federal law. Accordingly, I am upholding the Level I decision and denying your appeal. Your requested relief is also therefore denied.

If you wish to appeal, you must do so within 20 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at http://pol.tasb.org/Home/Index/309. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

Sincerely,

Chris Burtch

Managing Director of Athletics

Level II Hearing Officer

September 17, 2026

To: Complaint Resolution, Frisco Independent School District

Copy: Chris Burtch, Managing Director of Athletics; Esther Kolni, General Counsel; Dr. Todd Fouche, Superintendent

Re: Request for the record and authority underlying the July 7, 2026 suspension and criminal trespass notice — References Z005911-061526 and Z006179-091626

On July 7, 2026, I received a Summary of Investigation issued by Ms. Melissa Howard, Mr. Matthew Franks, Mr. Daiki Sato, and Mr. Justin Bilgri. It suspended me from every Iron Horse Aquatics event through December 31, 2026 and stated that the District would pursue criminal trespass enforcement if I attended. Iron Horse Aquatics operates at the District's natatorium, and the letter bars me from a District facility.

I ask the District to state in writing whether it considers that action a refusal of entry to, or ejection from, District property under Texas Education Code Section 37.105.

If the District considers it an action under Section 37.105, please provide the following.

1. The name and title of the school administrator, school resource officer, or school district peace officer who made the determination required by Section 37.105(a), and the date of that determination.

2. The record of the verbal warning required by Section 37.105(a)(2)(A) and maintained under Section 37.105(c), including the name of the person who issued it and the date it was issued.

3. The written information explaining the appeal process, which Section 37.105(d) requires the District to provide at the time a person is refused entry or ejected. I did not receive any such information on or after July 7, 2026.

4. Confirmation of the date on which the term of the refusal or ejection begins and ends, consistent with the two-year limit in Section 37.105(f).

5. The location on the District's website of the notice required by Section 37.105(g) describing these provisions and the appeal process established under Section 37.105(h).

If the District does not consider the July 7, 2026 action to be a refusal of entry or ejection under Section 37.105, please identify the specific authority under which four Iron Horse Aquatics coaching staff members barred a parent from a District facility and invoked criminal trespass enforcement, and please identify the appeal process the District contends applies to that action.

I ask that all records relating to the July 7, 2026 determination be preserved, including any verbal warning records, communications among District staff concerning the decision, and any documents relied upon in reaching it.

I raise this now because my Level III appeal is before the Board of Trustees on October 19, 2026, and because Section 37.105(h) provides for appeal of a refusal of entry or ejection to the Board. I ask that the District's response be provided in time for inclusion in the Level III record.

Stephen Ray Jordan, Pro se
13054 Cinderella Lane, Frisco, Texas 75035
srjordan@gmail.com | (972) 403-1231

SUPPLEMENT TO LEVEL III APPEAL

Reference Z006179-091626, appealing the Level II decision of September 14, 2026 in Z005911-061526

Submitted for inclusion in the Level III record before the October 19, 2026 Board meeting

I submit this supplement to my Level III appeal and ask that it be included in the Level III record provided to the Board of Trustees. It adds one ground and one remedy. All previously stated grounds and remedies are unchanged and are preserved.

Additional Ground

11. The July 7, 2026 suspension and criminal trespass notice does not comply with Texas Education Code Section 37.105, and no level below has addressed it.

On July 7, 2026, Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri issued a Summary of Investigation suspending me from every Iron Horse Aquatics event through December 31, 2026 and stating that the District would pursue criminal trespass enforcement. Iron Horse Aquatics operates at the District's natatorium. The effect of that letter is to bar a parent from a District facility.

Section 37.105(a) permits a school district to refuse entry to or eject a person from property under the district's control only where the person refuses to leave peaceably on request and either poses a substantial risk of harm to any person, or behaves in a manner inappropriate for a school setting after a school administrator, school resource officer, or school district peace officer has issued a verbal warning that the behavior may result in refusal of entry or ejection, and the person persists in that behavior.

None of those conditions is present here. I was never asked to leave District property and never refused to do so. The July 7, 2026 letter was issued by coaching staff, not by a school administrator, a school resource officer, or a school district peace officer. I have never received a verbal warning of the kind Section 37.105(a)(2)(A) describes, and no record of such a warning has been produced to me, although Section 37.105(c) requires the District to maintain one.

Section 37.105(d) requires that, at the time a person is refused entry or ejected, the district provide that person written information explaining the appeal process established under Section 37.105(h). I received no such information on or after July 7, 2026. Section 37.105(h) provides for appeal of that decision to the Board of Trustees.

The District therefore stands in one of two positions. If the July 7, 2026 action is a refusal of entry or ejection under Section 37.105, it was taken by persons the statute does not authorize, without the predicate conduct the statute requires, without the warning record Section 37.105(c) requires the District to keep, and without the written appeal notice Section 37.105(d) requires. If it is not an action under Section 37.105, then four coaching staff members barred a parent from a District facility and invoked criminal trespass enforcement under no identified authority and subject to no identified appeal process.

I asked the District in writing on September 17, 2026 to state which of those positions it takes and to produce the records Section 37.105 requires. That request is part of this record.

The District has never identified the appeal process applicable to the July 7, 2026 action. Section 37.105(h) provides for appeal of a refusal of entry or ejection to the Board of Trustees, and this proceeding is that appeal.

No determination below addresses Section 37.105. The July 20, 2026 finding does not mention it. The August 12, 2026 decision does not mention it. The September 14, 2026 decision does not mention it, and states instead that the consequences were based solely on events at a swim meet in Arkansas on June 5, 2026.

Additional Remedy

11. Set aside the July 7, 2026 refusal of entry or ejection, or in the alternative determine on the record the authority under which it was issued, and direct that the District produce the determination, the verbal warning record required by Section 37.105(c), and the written appeal information required by Section 37.105(d). Direct that no refusal of entry or ejection issue in the future except in compliance with Section 37.105.

I preserve all objections previously stated and all grounds and remedies set out in my Level III appeal.

Stephen Ray Jordan, Pro se
13054 Cinderella Lane, Frisco, Texas 75035
srjordan@gmail.com | (972) 403-1231

EXHIBIT J

Complaints

In this policy, the terms “complaint” and “grievance” shall have the same meaning.

Other Complaint Processes

Student or parent complaints shall be filed in accordance with this policy, except as required by the policies listed below. Some of these policies require appeals to be submitted in accordance with FNG after the relevant complaint process has been followed:

1. Complaints alleging discrimination or harassment based on race, color, religion, sex, gender, national origin, age, or disability shall be submitted in accordance with FFH.
2. Complaints concerning dating violence shall be submitted in accordance with FFH.
3. Complaints concerning retaliation related to discrimination and harassment shall be submitted in accordance with FFH.
4. Complaints concerning bullying or retaliation related to bullying shall be submitted in accordance with FFI.
5. Complaints concerning failure to award credit or a final grade on the basis of attendance shall be submitted in accordance with FEC.
6. Complaints concerning expulsion shall be submitted in accordance with FOD and the Student Code of Conduct.
7. Complaints concerning any final decisions of the gifted and talented selection committee regarding selection for or exit from the gifted program shall be submitted in accordance with EHBB.
8. Complaints within the scope of Section 504, including complaints concerning identification, evaluation, or educational placement of a student with a disability, shall be submitted in accordance with FB and the procedural safeguards handbook.
9. Complaints within the scope of the Individuals with Disabilities Education Act, including complaints concerning identification, evaluation, educational placement, or discipline of a student with a disability, shall be submitted in accordance with EHBAE, FOF, and the procedural safeguards handbook provided to parents of all students referred to special education.
10. Complaints concerning instructional resources shall be submitted in accordance with the EF series.

11. Complaints concerning a commissioned peace officer who is an employee of the District shall be submitted in accordance with the CKE series.

12. Complaints concerning intradistrict transfers or campus assignment shall be submitted in accordance with FDB.

13. Complaints concerning admission, placement, or services provided for a homeless student shall be submitted in accordance with FDC.

14. Complaints concerning disputes regarding a student's eligibility for free or reduced-priced meal programs shall be submitted in accordance with COB.

Complaints regarding refusal of entry to or ejection from District property based on Education Code 37.105 shall be filed in accordance with this policy. However, the timelines shall be adjusted as necessary to permit the complainant to address the Board in person within 90 calendar days of filing the initial complaint, unless the complaint is resolved before the Board considers it. [See GKA(LEGAL)]

Notice to Students and Parents

The District shall inform students and parents of this policy through appropriate District publications and on the District's website.

Informal Process

The Board encourages students and parents to discuss their concerns with the appropriate teacher, principal, or other appropriate campus or District administrator who has the authority to address the concerns. Concerns should be expressed as soon as possible to allow early resolution at the lowest possible administrative level.

Filing Deadlines

After Informal Process

If a student or parent has engaged in the informal process in an attempt to resolve the complaint with the District and has not reached a resolution during the process, the student or parent shall have the later of:

- Ninety calendar days to file a complaint from the date the student or parent first knew, or with reasonable diligence should have known, of the decision or action giving rise to the complaint; or

- Thirty calendar days to file a complaint from the date on which the District provided information to the student or parent regarding how to file a grievance.

[See Formal Process, below]

No Prior Informal Process

If the student or parent has not engaged in the informal process, the student or parent shall have no more than 60 calendar days from the date the student or parent first knew, or with reasonable

diligence should have known, of the decision or action giving rise to the complaint or grievance to file a complaint using the appropriate form.

Deadline Extensions

All deadlines shall be followed unless otherwise required by law or modified by mutual written consent.

Formal Process

A student or parent may initiate the formal process described below by timely filing a written complaint form.

The process described in this policy shall not be construed to create new or additional rights beyond those granted by law or Board policy, nor to require a full evidentiary hearing or "mini-trial" at any level.

The complaint form shall be filed with the District-level administrator designated to accept formal complaint filings. The District-level administrator shall assign the complaint to be heard by the lowest-level administrator who has the authority to remedy the alleged problem. In most circumstances, Level One complaints filed by students and parents shall be assigned to be heard by the campus principal for any complaint on a matter related to a campus. For a complaint that arises on a matter that is unrelated to a campus, the complaint shall be assigned to be heard by the appropriate District-level administrator.

A Board member shall be permitted to file a complaint under this policy, but, if the complaint is considered by the Board or Board committee, the Board member shall be prohibited from voting on the Board's or Board committee's decision.

If the complaint is not filed with the appropriate administrator, the receiving administrator must note the date and time the complaint form was received and immediately forward the complaint form to the appropriate administrator.

Option to Continue Informal Process

Even after initiating the formal complaint process, the complainant is encouraged to seek informal resolution of their concerns. A complainant whose concerns are resolved may withdraw a formal complaint at any time.

Notice of Complaint

A District employee against whom a complaint has been filed shall be provided notice of the complaint in accordance with administrative regulations. The employee shall have sufficient opportunity to submit a written response to the complaint that shall be included in the record of the complaint.

Freedom from Retaliation

Neither the Board nor any District employee shall unlawfully retaliate against any student or parent for bringing a concern or complaint.

General Provisions

Filing

Complaint forms and appeal notices may be filed by electronic submission. Filings by electronic submission shall be timely filed if they are received by the close of business on the deadline, as indicated by the date/time shown on the electronic submission.

Scheduling Hearings

The District shall make reasonable attempts to schedule hearings at a mutually agreeable time. If a complainant fails to appear at a scheduled hearing, the District may hold the hearing and issue a decision in the complainant's absence.

Decision

A "decision" shall mean a written communication to the complainant from the appropriate administrator that provides an explanation of the basis of the decision, an indication of each document that supports the decision, and any relief or redress to be provided. A decision shall be issued on the merits of the concern raised in the complaint notwithstanding any procedural errors or the type of relief or redress requested, unless issuance of a decision on the merits of the concern is otherwise prohibited by law.

The decision shall also include information regarding the filing of an appeal in accordance with this policy. After a hearing at Level Three, the decision shall include information on submitting an appeal to the commissioner.

A decision may be hand-delivered, sent by electronic communication to the complainant's email address of record, or sent by U.S. Mail to the complainant's mailing address of record. Mailed decisions shall be timely if they are postmarked by U.S. Mail on or before the deadline.

Representative

"Representative" shall mean any person who or organization that is designated by the complainant to represent the complainant in the complaint process. A student may be represented by an adult at any level of the complaint.

The complainant may designate a representative through written notice to the District at any level of this process. The representative may participate in person or by telephone conference call. If the complainant designates a representative with fewer than three business days' notice to the District before a scheduled hearing, the District may reschedule the hearing to a later date, if desired, in order to include the District's counsel. The District may be represented by counsel at any level of the process.

Consolidating Complaints

To promote efficiency in addressing complaints, the appropriate administrator shall determine if separate or serial complaints arising from an event or series of related events shall be consolidated.

Costs Incurred

Each party shall pay its own costs incurred in the course of the complaint.

Complaint and Appeal Forms

Complaints and appeals under this policy shall be submitted on a form provided by the District through electronic submission. If a complainant needs an accommodation to complete the form via hand-delivery rather than electronic submission, the complainant should contact the District-level administrator assigned to accept formal grievance filings to request a physical form to be provided by the District. If a complainant is granted an accommodation, hand-delivered filings will be timely filed if received by the District-level administrator assigned to accept formal grievance filings or designee by the close of business on the deadline.

Copies of any documents that support the complaint should be included with the complaint filing form. If the complainant does not have copies of these documents, copies may be presented at the Level One hearing. After the Level One hearing, the complainant may supplement the record with additional documents or include additional claims.

Record

A record of each complaint hearing shall be created and retained in accordance with this policy. The record shall include documents submitted by the complainant, documents determined relevant by District personnel, and the decision.

Remand

A complaint or appeal form that is incomplete in any material aspect shall be refiled. If the complainant presents additional complaints, evidence, or requested remedies following the Level One hearing, the complaint may be remanded in order to develop an adequate record of the complaint.

If an adequate record has not been developed, the appropriate administrator may remand the complaint to a lower level, including remand to Level One, if appropriate. The Board or Board committee may remand a complaint to a lower level if at the Board level of review an adequate record has not been developed.

Assignment of Hearing Officer

If the only administrator who has authority to remedy the alleged problem is the Superintendent, the complaint may begin at the appropriate level in accordance with this policy, including a hearing in front of another administrator to develop an adequate record of the complaint. Any established deadlines will remain in place.

When a District employee is the subject of a complaint, the hearing shall be conducted by an administrator who is in a supervisory or higher organizational role. The District employee who is the subject of the complaint shall recuse themselves from reviewing the complaint at any level in the process.

Investigation

The District may conduct an investigation at any level in the complaint process. If the District and the complainant mutually agree,

all deadlines shall be suspended during an investigation. If an investigation is necessary under a policy that requires appeals to be submitted in accordance with FNG only after the relevant complaint process under a different policy has been followed, the FNG process may be abated by the District to allow the relevant investigation and complaint process to be followed prior to consideration at any level of the FNG process.

Complaint Levels

Level One

At Level One, the appropriate hearing officer shall hold a hearing with the complainant within 10 calendar days after receipt of the written complaint. The hearing officer may set reasonable time limits for the hearing.

The hearing officer shall provide the complainant a decision within 20 calendar days following the hearing. In reaching a decision, the hearing officer may consider information provided with the complaint form and any other relevant documents or information the hearing officer believes will help resolve the complaint.

Level Two

If the complainant did not receive the relief requested at Level One or if the time for a decision has expired, the complainant may request a hearing at Level Two to appeal the Level One decision.

The appeal notice must be filed in writing, on a form provided by the District through electronic submission, within 20 calendar days of the date of the Level One decision or, if no decision has been communicated to the complainant, within 20 calendar days of the Level One decision deadline.

After receiving notice of the appeal, the District-level administrator assigned to receive formal complaints will collaborate with the Level One hearing officer to prepare and forward a record of the Level One complaint to the Level Two hearing officer. The hearing officer shall provide a copy of the Level One record to the complainant upon written request by the complainant.

The Level One record shall include:

1. The original complaint form and any attachments.
2. Any other documents submitted by the complainant at Level One.
3. If the complaint is against a District employee, the written response of the District employee, if any.
4. The decision issued at Level One and any attachments.
5. All other documents relied upon by the Level One hearing officer in reaching the Level One decision.

The hearing officer shall hold a hearing within 10 calendar days after the appeal notice is filed. The hearing officer may set reasonable time limits for the hearing.

The hearing officer shall provide the complainant a decision within 20 calendar days following the hearing. In reaching a decision, the hearing officer may consider the Level One record, any additional information provided prior to the Level Two hearing, and any other relevant documents or information the hearing officer believes will help resolve the complaint.

Recordings of the Level One and Level Two hearings, if any, shall be maintained with the Level One and Level Two records.

Level Three

If the complainant did not receive the relief requested at Level Two or if the time for a decision has expired, the complainant may appeal the decision to the Board.

The appeal notice must be filed in writing, on a form provided by the District through electronic submission, within 20 calendar days of the date of the Level Two decision or, if no decision has been communicated to the complainant, within 20 calendar days of the Level Two decision deadline.

Unless the Board delegates a committee in accordance with law, the Board shall consider the appeal of the Level Two decision.

After receiving notice of the appeal, the Board or Board committee shall hold a meeting to discuss the complaint no later than 60 calendar days after the date on which the Level Two decision was made.

The Superintendent shall inform the complainant whether the Board or a Board committee will consider the appeal and of the date, time, and place of the meeting at which the complaint will be on the agenda for presentation to the Board or Board committee.

At least five business days before the Board or Board committee meeting, the Superintendent shall provide the complainant a description of any information the Board intends to rely on that is not contained in the record created at the previous hearing levels, including any preliminary hearing.

The Superintendent shall provide the Board the record of the Level Two appeal. The complainant may request a copy of the Level Two record.

The Level Two record shall include:

1. The Level One record.

2. The notice of appeal from Level One to Level Two.
3. Any other documents submitted by the complainant at Level Two.
4. The decision issued at Level Two and any attachments.
5. All other documents relied upon by the administration in reaching the Level Two decision.

The complainant may request that the complaint be considered in open or closed meeting. The District shall honor that request unless the Texas Open Meetings Act or other applicable law requires otherwise. [See BE]

At the meeting, the presiding officer may set reasonable time limits and guidelines for the presentation, including an opportunity for the complainant and administration to each make a presentation, either orally or in writing, and an opportunity for questioning by Board members, if requested by the Board.

In addition to any other record of the meeting required by law, the Board or Board committee shall prepare a separate record of the Level Three appeal. If the Level Three appeal is made orally, at the request of the Board, including the presentation of information by the complainant or the complainant's representative, any presentation from the administration must be preserved as part of the Level Three record, and questions from Board members with responses shall be recorded by audio recording, video/audio recording, or court reporter.

The Board or Board committee shall then consider the complaint. It shall make a decision no later than 30 calendar days after the date of the Board or Board committee meeting at which the complaint was presented. The complainant shall be provided a decision in accordance with this policy and state law.

United States Constitution

A district shall take no action abridging the freedom of speech or the right of the people to petition the board for redress of grievances. *U.S. Const. Amend. I, XIV* [See FNA]

A board may confine its meetings to specified subject matter and may hold nonpublic sessions to transact business. But when a board sits in public meetings to conduct public business and hear the views of citizens, it may not discriminate between speakers on the basis of the content of their speech or the message it conveys. *Rosenberger v. Rector & Visitors of Univ. of Virginia, 515 U.S. 819, 828 (1995); City of Madison v. Wis. Emp. Rel. Comm'n, 429 U.S. 167, 174 (1976); Pickering v. Bd. of Educ., 391 U.S. 563, 568 (1968)*

Texas Constitution

Citizens shall have the right, in a peaceable manner, to assemble together for their common good and to apply to those invested with the powers of government for redress of grievances or other purposes, by petition, address, or remonstrance. *Tex. Const. Art. I, Sec. 27*

There is no requirement that a board negotiate or even respond to complaints. However, a board must stop, look, and listen and must consider the petition, address, or remonstrance. *Prof'l Ass'n of College Educators v. El Paso County Cmty. [College] Dist., 678 S.W.2d 94 (Tex. App.—El Paso 1984, writ ref'd n.r.e.)*

Federal Laws

Section 504

A district that receives federal financial assistance, directly or indirectly, and that employs 15 or more persons shall adopt grievance procedures that incorporate appropriate due process standards and that provide for the prompt and equitable resolution of complaints alleging any action prohibited by Section 504 of the Rehabilitation Act of 1973. *34 C.F.R. 104.7(b)*

Americans with Disabilities Act

A district that employs 50 or more persons shall adopt and publish grievance procedures providing for prompt and equitable resolution of complaints alleging any action that would be prohibited by the Code of Federal Regulations, Title 28, Part 35 (Americans with Disabilities Act regulations). *28 C.F.R. 35.107*

Title IX

A district that receives federal financial assistance, directly or indirectly, must adopt and publish grievance procedures providing for prompt and equitable resolution of student complaints alleging any action prohibited by Title IX of the Education Amendments of 1972. *34 C.F.R. 106.8(c)* [See FB and FFH]

Grievances

A board shall provide for procedures to consider complaints that a parent's right has been denied. *Education Code 26.001(d)(1)*

A board shall adopt a grievance procedure that complies with Education Code Chapter 26A under which the board shall address

each grievance that it receives concerning a violation of a right guaranteed by Education Code Chapter 26 (Parental Rights), of a board policy, or of a provision of Education Code Title II.

Exceptions

The board is not required by the provision above or Education Code 11.1511(b)(13) (requiring adoption of a process to hear complaints) to address a grievance concerning a student's participation in an extracurricular activity that does not involve a violation of a right guaranteed by Education Code Chapter 26, of a board policy, or of a provision of Education Code Title II. This provision does not affect a claim brought by a parent under the Individuals with Disabilities Education Act (20 U.S.C. Section 1400 et seq.) or a successor federal statute addressing special education services for a child with a disability.

Notice to Teacher or Employee

The grievance procedure must require that, for a complaint filed against a teacher or other employee, the school district provide notice of the complaint to the teacher or employee against whom the complaint was filed and sufficient opportunity for the teacher or employee against whom the complaint was filed to submit a written response to the complaint to be included in the record.

Education Code 26.011

Grievance Policy

The board shall adopt a grievance policy to address grievances received by the district. *Education Code 26A.001(a)*

Levels of Review

The policy must provide for the following levels of review, except as provided below:

1. Review by the principal of the district campus at which the grievance is filed or the principal's designee or, for a grievance that arises from subject matter unrelated to a campus, an administrator at the school district's central office;
2. If established by the policy, an appeal to an administrator at the school district's central office;
3. An appeal to the superintendent of the school district or the superintendent's designee; and
4. An appeal to the board of trustees of the school district.

A review or appeal on a grievance must be conducted by a person with the authority to address the grievance unless a preliminary hearing is necessary to develop a record or a recommendation for the board of trustees of the school district.

[For requirements for determining level of review related to recusal of a district employee or board member, see General Requirements, below.]

Education Code 26A.001(b), (c)

General Requirements

The policy must:

1. Prohibit the board or a district employee from retaliating against a student or parent of a student who files a grievance in accordance with the policy;
2. Require a person involved in reviewing a grievance under the policy to recuse himself or herself from reviewing the grievance if the person is the subject of the grievance;
3. Provide for a higher level of review if the person who would otherwise review the grievance is required to recuse himself or herself;
4. Provide for the creation and retention of a record of each hearing on the grievance, including documents submitted by the person who filed the grievance or determined relevant by school district personnel and a written record of the decision, including an explanation of the basis for the decision and an indication of each document that supports the decision;
5. Allow the person who filed the grievance to supplement the record with additional documents or add additional claims;
6. Allow for a member of the board to file a grievance with the district, but prohibit the member from voting on matters related to that grievance;
7. Allow for a remand to a lower level of review to develop a record at any time, including at the board level of review;
8. Require the district to direct a grievance that is filed with the incorrect administrator to the appropriate administrator and consider the grievance filed on the date on which the grievance was initially filed;
9. Require the district to issue a decision on the merits of the concern raised in the grievance, notwithstanding procedural errors or the type of relief requested;
10. Unless otherwise required by law, allow for a hearing or meeting at which the grievance will be discussed to be open or closed at the request of the person who filed the grievance; and

11. For a grievance before the board, require that the person who filed the grievance be provided at least five business days before the date on which the meeting to discuss the grievance will be held a description of any information the board of trustees intends to rely on that is not contained in the record; and

12. For a grievance before the board, require the meeting at which the grievance is discussed be recorded by video or audio recording or by transcript created by a certified court reporter.

Education Code 26A.001(e)

Deadlines

Parental Grievances

For a grievance filed by a parent of a student enrolled in the school district, the policy must provide:

1. Sixty days to file a grievance from the date on which the parent knew or had reason to know of the facts giving rise to the grievance; or

2. If the parent or person engaged in informal attempts to resolve the grievance, the later of 90 days to file a grievance from the date determined above or 30 days to file a grievance from the date on which the district provided information to the parent or person regarding how to file the grievance.

Appeal

The policy must provide at least 20 days to file an appeal after the date on which a decision on the grievance was made.

Hearings

For a hearing that is not before the board of trustees of the school district, the policy must require:

1. The district to hold a hearing not later than the 10th day after the date on which the grievance or appeal was filed; and

2. A written decision to be made not later than the 20th day after the date on which the hearing was held that includes any relief or redress to be provided and information regarding filing an appeal, including the timeline to appeal under this provision and Education Code 7.057, if applicable.

For a hearing before the board, the policy must require the board to:

1. Hold a meeting to discuss the grievance not later than the 60th day after the date on which the previous decision on the grievance was made; and

2. Make a decision on the grievance not later than the 30th day after the date on which the meeting is held.

Education Code 26A.002

Board Committee

The board may delegate the authority to hear and decide a grievance to a committee of at least three members composed only of members of the board. For purposes of an appeal to the commissioner under Education Code 7.057, a decision by the committee is a decision of the board of trustees. The policy requirements above apply to the committee in the same manner as those requirements apply to the board. *Education Code 26A.001(e)*

Report on Grievances

A district shall annually submit to the Texas Education Agency (TEA) a report on grievances filed in the district during the preceding year. The report must include for each grievance the resolution of the grievance and any corrective action taken. *Education Code 26A.001(g)*

Not later than December 1 of each year, TEA shall post on the agency's website a report on grievances filed in school districts during the preceding year. The report must aggregate the data statewide and state the number of grievances filed, the number of grievances resolved and the resolution of those grievances, and any corrective actions taken. *Education Code 26A.001(h)*

Filing Procedures and Forms

The board shall develop, make publicly available in a prominent location on the district's website, and include in the district's student handbook the procedures for resolving grievances; standardized forms for filing a grievance, a notice of appeal, or a request for a hearing under this chapter; and the method by which a grievance may be filed electronically.

Electronic Filing

A district shall ensure that a grievance may be submitted electronically at the location on the district's website at which the information described above is available.

TEA Notification

A district shall submit and make accessible to TEA the location on the district's website at which the information described above is available.

Education Code 26A.003

Commissioner Enforcement

If a grievance is appealed to the commissioner under Education Code 7.057, the commissioner of education may:

On Appeal

1. Investigate an alleged violation of state or federal law regarding the confidentiality of student information, including the Family Educational Rights and Privacy Act of 1974 (20 U.S.C.

Section 1232g), relating to the grievance and collaborate with relevant federal agencies in such an investigation; and

2. Take any action necessary to compel the district, the district's board, or a district employee to comply with the state or federal law.

Education Code 26A.001(f)

Determination of Retaliation

If the commissioner determines that a school district educator has retaliated against a student or parent of or person standing in parental relation to a student in violation of the policy requirement, above, the commissioner of education may report the educator to the State Board for Educator Certification for investigation. *Education Code 26A.001(i)*

Superintendent Testimony

If the commissioner of education finds against a school district under Education Code 7.057 in at least five grievances to which that provision applies involving the district during a school year, the superintendent of the school district must appear before the State Board of Education to testify regarding the commissioner's findings and the frequency of grievances against the district. *Education Code 26A.004*

Denial of Class Credit or Final Grade

If a student is denied credit or a final grade for a class by an attendance committee, the student may appeal the decision to the board. *Education Code 25.092(d)* [See FEC]

Complaints Against Professional Employees

A person may not file suit against a professional employee of a district unless the person has exhausted the district's remedies for resolving the complaint. *Education Code 22.0514*

"Professional employee of a district" includes:

1. A superintendent, principal, teacher, including a substitute teacher, supervisor, social worker, school counselor, nurse, and teacher's aide employed by a district;
2. A teacher employed by a company that contracts with a district to provide the teacher's services to the district;
3. A student in an education preparation program participating in a field experience or internship;
4. A DPS-certified school bus driver;
5. A member of the board; and
6. Any other person whose employment by a district requires certification and the exercise of discretion.

Education Code 22.051(a)

Finality of Grades

An examination or course grade issued by a classroom teacher is final and may not be changed unless the grade is arbitrary, erroneous, or not consistent with a district's grading policy applicable to the grade, as determined by the board.

A board's determination is not subject to appeal. This provision does not prohibit an appeal related to a student's eligibility to participate in extracurricular activities under Education Code 33.081. [See FM]

Education Code 28.0214

Closed Meeting

A board may conduct a closed meeting on a parent or student complaint to the extent required or provided by law. *Gov't Code Ch. 551, Subch. D* [See BEC]

Record of Proceedings

An appeal of a board's decision to the commissioner of education shall be decided based on a review of the record developed at the district level. "Record" includes, at a minimum, an audible electronic recording or written transcript of all oral testimony or argument. *Education Code 7.057(c), (f)*

It is a district's responsibility to make and preserve the records of the proceedings before the board. If a district fails to create and preserve the record without good cause, all substantial evidence issues that require missing portions of the record for resolution shall be deemed against the district. The record shall include:

1. A tape recording or a transcript of the hearing at the local level. If a tape recording is used:
    a. The tape recording must be complete, audible, and clear; and
    b. Each speaker must be clearly identified.
2. All evidence admitted;
3. All offers of proof;
4. All written pleadings, motions, and intermediate rulings;
5. A description of matters officially noticed;
6. If applicable, the decision of the hearing examiner;
7. A tape recording or transcript of the oral argument before the board; and
8. The decision of the board.

19 TAC 157.1073(d)

Note: This policy addresses discrimination, including harassment, and retaliation against District students. For provisions regarding discrimination, including harassment, and retaliation against District employees, see DIA. For reporting requirements related to child abuse and neglect, see FFG. Note that FFH shall be used in conjunction with FFI (bullying) for certain prohibited conduct.

Prohibited Conduct

In this policy, the term "prohibited conduct" includes discrimination, harassment, dating violence, and retaliation as defined by this policy, even if the behavior does not rise to the level of unlawful conduct.

Prohibited conduct also includes sexual harassment as defined by Title IX. [See FFH(LEGAL)]

Statement of Nondiscrimination

The District prohibits discrimination, including harassment, against any student. Discrimination is defined as treating a student or group of students differently from similarly situated students on the basis of race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law. One type of harassment this policy prohibits is dating violence, as defined below. Retaliation against anyone exercising their rights under this policy is a violation of District policy and is prohibited.

Harassment

Harassment of a student is defined as physical, verbal, or nonverbal conduct based on the student's race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law, when the conduct is so severe, persistent, or pervasive that the conduct:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or
3. Otherwise adversely affects the student's educational opportunities.

Harassment includes dating violence as defined by law and this policy.

Examples

Examples of prohibited harassment may include offensive or derogatory language directed at another person's religious beliefs or practices, accent, skin color, or need for accommodation; threatening, intimidating, or humiliating conduct; offensive jokes, name call-

ing, slurs, or rumors; cyberharassment; physical aggression or assault; display of graffiti or printed material promoting racial, ethnic, or other negative stereotypes; or other kinds of aggressive conduct such as theft or damage to property.

Title IX Sexual Harassment

As required by law, the District shall follow the procedures below at Response to Title IX Sexual Harassment upon a report of sex-based harassment, including sexual harassment, gender-based harassment, and dating violence, when such allegations, if proved, would meet the definition of sexual harassment in an education program or activity and against a person in the United States under Title IX. [See FFH(LEGAL)]

Other Sexual Harassment

By an Employee

Sexual harassment of a student by a District employee includes both welcome and unwelcome sexual advances; requests for sexual favors; sexually motivated physical, verbal, or nonverbal conduct; or other conduct or communication of a sexual nature when:

1. A District employee causes the student to believe that the student must submit to the conduct in order to participate in a school program or activity, or that the employee will make an educational decision based on whether or not the student submits to the conduct; or
2. The conduct is so severe, persistent, or pervasive that it:
    a. Affects the student's ability to participate in or benefit from an educational program or activity, or otherwise adversely affects the student's educational opportunities; or
    b. Creates an intimidating, threatening, hostile, or abusive educational environment.

Romantic or other inappropriate social relationships between students and District employees are prohibited. Any sexual relationship between a student and a District employee is always prohibited, even if consensual. [See DH]

By Others

Sexual harassment of a student, including harassment committed by another student, includes unwelcome sexual advances; requests for sexual favors; or sexually motivated physical, verbal, or nonverbal conduct when the conduct is so severe, persistent, or pervasive that it:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or

3. Otherwise adversely affects the student's educational opportunities.

Examples

Examples of sexual harassment of a student may include sexual advances; touching intimate body parts or coercing physical contact that is sexual in nature; jokes or conversations of a sexual nature; and other sexually motivated conduct, contact, or communications, including electronic communication.

Necessary or permissible physical contact such as assisting a child by taking the child's hand, comforting a child with a hug, or other physical contact not reasonably construed as sexual in nature is not sexual harassment.

Gender-Based Harassment

Gender-based harassment includes physical, verbal, or nonverbal conduct based on the student's gender, the student's expression of characteristics perceived as stereotypical for the student's gender, or the student's failure to conform to stereotypical notions of masculinity or femininity. For purposes of this policy, gender-based harassment is considered prohibited harassment if the conduct is so severe, persistent, or pervasive that the conduct:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;

2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or

3. Otherwise adversely affects the student's educational opportunities.

Examples

Examples of gender-based harassment directed against a student, regardless of the student's or the harasser's actual or perceived sexual orientation or gender identity, may include offensive jokes, name-calling, slurs, or rumors; cyberharassment; physical aggression or assault; threatening or intimidating conduct; or other kinds of aggressive conduct such as theft or damage to property.

Dating Violence

Dating violence occurs when a person in a current or past dating relationship uses physical, sexual, verbal, or emotional abuse to harm, threaten, intimidate, or control the other person in the relationship. Dating violence also occurs when a person commits these acts against a person in a marriage or dating relationship with the individual who is or was once in a marriage or dating relationship with the person committing the offense.

For purposes of this policy, dating violence is considered prohibited harassment if the conduct is so severe, persistent, or pervasive that the conduct:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or
3. Otherwise adversely affects the student's educational opportunities.

Examples — Examples of dating violence against a student may include physical or sexual assaults; name-calling; put-downs; or threats directed at the student, the student's family members, or members of the student's household. Additional examples may include destroying property belonging to the student, threatening to commit suicide or homicide if the student ends the relationship, attempting to isolate the student from friends and family, stalking, threatening a student's spouse or current dating partner, or encouraging others to engage in these behaviors.

Reporting Procedures

Any student who believes that he or she has experienced prohibited conduct and any person who believes that a student has experienced prohibited conduct should immediately report the alleged acts to a teacher, school counselor, principal, other District employee, or the appropriate District official listed in this policy.

Student Report

Employee Report — Any District employee who suspects or receives direct or indirect notice that a student or group of students has or may have experienced prohibited conduct shall immediately notify the appropriate District official listed in this policy and take any other steps required by this policy.

Definition of District Officials — For the purposes of this policy, District officials are the Title IX coordinator, the ADA/Section 504 coordinator, and the Superintendent.

Title IX Coordinator — Reports of discrimination based on sex, including sexual harassment, gender-based harassment, or dating violence, may be directed to the designated Title IX coordinator for students. [See FFH(EXHIBIT)]

ADA / Section 504 Coordinator — Reports of discrimination based on disability may be directed to the designated ADA/Section 504 coordinator for students. [See FFH(EXHIBIT)]

Superintendent — The Superintendent shall serve as coordinator for purposes of District compliance with all other nondiscrimination laws.

Alternative Reporting Procedures — An individual shall not be required to report prohibited conduct to the person alleged to have committed the conduct. Reports concerning prohibited conduct, including reports against the Title IX

coordinator or ADA/Section 504 coordinator, may be directed to the Superintendent.

A report against the Superintendent may be made directly to the Board. If a report is made directly to the Board, the Board shall appoint an appropriate person to conduct an investigation.

Timely Reporting

To ensure the District's prompt investigation, reports of prohibited conduct shall be made as soon as possible after the alleged act or knowledge of the alleged act.

Notice to Parents

The District official or designee shall promptly notify the parents of any student alleged to have experienced prohibited conduct by a District employee or another adult. [For parental notification requirements regarding an allegation of educator misconduct with a student, see FFF.]

When the District receives a report of prohibited conduct that includes dating violence, the appropriate District official shall immediately notify the parent or guardian of the student who has been identified in the report as the alleged victim or perpetrator.

Investigation of Reports Other Than Title IX

The following procedures apply to all allegations of prohibited conduct other than allegations of harassment prohibited by Title IX. [See FFH(LEGAL)] For allegations of sex-based harassment that, if proved, would meet the definition of sexual harassment under Title IX, including sexual harassment, gender-based harassment, and dating violence, see the procedures below at Response to Title IX Sexual Harassment.

The District may request, but shall not require, a written report. If a report is made orally, the District official shall reduce the report to written form.

Initial Assessment

Upon receipt or notice of a report, the District official shall determine whether the allegations, if proved, would constitute prohibited conduct as defined by this policy. If so, the District shall immediately undertake an investigation, except as provided below at Criminal Investigation.

If the District official determines that the allegations, if proved, would not constitute prohibited conduct as defined by this policy, the District official shall refer the complaint for consideration under FFI.

Interim Action

If appropriate and regardless of whether a criminal or regulatory investigation regarding the alleged conduct is pending, the District shall promptly take interim action calculated to address prohibited conduct or bullying prior to the completion of the District's investigation.

District Investigation

The investigation may be conducted by the District official or a designee, such as the principal, or by a third party designated by the District, such as an attorney. When appropriate, the principal shall be involved in or informed of the investigation.

The investigation may consist of personal interviews with the person making the report, the person against whom the report is filed, and others with knowledge of the circumstances surrounding the allegations. The investigation may also include analysis of other information or documents related to the allegations.

Criminal Investigation

If a law enforcement or regulatory agency notifies the District that a criminal or regulatory investigation has been initiated, the District shall confer with the agency to determine if the District investigation would impede the criminal or regulatory investigation. The District shall proceed with its investigation only to the extent that it does not impede the ongoing criminal or regulatory investigation. After the law enforcement or regulatory agency has finished gathering its evidence, the District shall promptly resume its investigation.

Concluding the Investigation

Absent extenuating circumstances, such as a request by a law enforcement or regulatory agency for the District to delay its investigation, the investigation should be completed within ten District business days from the date of the report; however, the investigator shall take additional time if necessary to complete a thorough investigation.

The investigator shall prepare a written report of the investigation. The report shall include a determination of whether prohibited conduct or bullying occurred. The report shall be filed with the District official overseeing the investigation.

Notification of Outcome

Notification of the outcome of the investigation shall be provided to both parties in compliance with FERPA.

District Action

Prohibited Conduct

If the results of an investigation indicate that prohibited conduct occurred, the District shall promptly respond by taking appropriate disciplinary action in accordance with the Student Code of Conduct and may take corrective action reasonably calculated to address the conduct.

Corrective Action

Examples of corrective action may include a training program for those involved in the report, a comprehensive education program for the school community, counseling to the victim and the student who engaged in prohibited conduct, follow-up inquiries to determine if any new incidents or any instances of retaliation have occurred, involving parents and students in efforts to identify problems and improve the school climate, increasing staff monitoring of

areas where prohibited conduct has occurred, and reaffirming the District's policy against discrimination, harassment, and retaliation.

Bullying — If the results of an investigation indicate that bullying occurred, as defined by FFI, the District official shall refer to FFI for appropriate notice to parents and District action. The District official shall refer to FDB for transfer provisions.

Improper Conduct — If the investigation reveals improper conduct that did not rise to the level of prohibited conduct or bullying, the District may take disciplinary action in accordance with the Student Code of Conduct or other corrective action reasonably calculated to address the conduct.

Confidentiality — To the greatest extent possible, the District shall respect the privacy of the complainant, persons against whom a report is filed, and witnesses. Limited disclosures may be necessary in order to conduct a thorough investigation and comply with applicable law.

Appeal — A student or parent who is dissatisfied with the outcome of the investigation may appeal through FNG(LOCAL), beginning at the appropriate level. A student or parent has the right to file a complaint with the United States Department of Education Office for Civil Rights.

Response to Title IX Sexual Harassment — For purposes of the District's response to reports of harassment prohibited by Title IX, definitions can be found in FFH(LEGAL).

General Response — When the District receives notice or an allegation of conduct that, if proved, would meet the definition of sexual harassment under Title IX, the Title IX coordinator shall promptly contact the complainant to:

- Discuss the availability of supportive measures and inform the complainant that they are available, with or without the filing of a formal complaint;
- Consider the complainant's wishes with respect to supportive measures; and
- Explain to the complainant the option and process for filing a formal complaint.

The District's response to sexual harassment shall treat complainants and respondents equitably by offering supportive measures to both parties, as appropriate, and by following the Title IX formal complaint process before imposing disciplinary sanctions or other actions that are not supportive measures against a respondent.

If a formal complaint is not filed or dismissed, the District reserves the right to investigate and respond to prohibited conduct in accordance with Board policies and the Student Code of Conduct. The Title IX coordinator also reserves the right to sign a formal complaint, initiating the Title IX grievance process, if it would be deliberately indifferent not to investigate and respond to the prohibited conduct in accordance with Board policies and the Student Code of Conduct.

Title IX Formal Complaint Process

To distinguish the process described below from the District's general grievance policies [see DGBA, FNG, and GF], this policy refers to the grievance process required by Title IX regulations for responding to formal complaints of sexual harassment as the District's "Title IX formal complaint process."

The Superintendent shall ensure the development of a Title IX formal complaint process that complies with legal requirements. [See FFH(LEGAL)] The formal complaint process shall be posted on the District's website. In compliance with Title IX regulations, the District's Title IX formal complaint process shall address the following basic requirements:

1. Equitable treatment of complainants and respondents;
2. An objective evaluation of all relevant evidence;
3. A requirement that the Title IX coordinator, investigator, decision-maker, or any person designated to facilitate an informal resolution process not have a conflict of interest or bias;
4. A presumption that the respondent is not responsible for the alleged sexual harassment until a determination is made at the conclusion of the Title IX formal complaint process;
5. Time frames that provide for a reasonably prompt conclusion of the Title IX formal complaint process, including time frames for appeals and any informal resolution process, and that allow for temporary delays or the limited extension of time frames with good cause and written notice as required by law;
6. A description of the possible disciplinary sanctions and remedies that may be implemented following a determination of responsibility for the alleged sexual harassment;
7. A statement of the standard of evidence to be used to determine responsibility for all Title IX formal complaints of sexual harassment;
8. Procedures and permissible bases for the complainant and respondent to appeal a determination of responsibility or a

dismissal of a Title IX formal complaint or any allegations therein;

9. A description of the supportive measures available to the complainant and respondent;

10. A prohibition on using or seeking information protected under a legally recognized privilege unless the individual holding the privilege has waived the privilege;

11. Additional formal complaint procedures in 34 C.F.R. 106.45(b), including written notice of a formal complaint, consolidation of formal complaints, recordkeeping, and investigation procedures; and

12. Other local procedures as determined by the Superintendent.

Standard of Evidence — The standard of evidence used to determine responsibility in a Title IX formal complaint of sexual harassment shall be the preponderance of the evidence.

Retaliation — The District prohibits retaliation by a student or District employee against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation. The definition of prohibited retaliation under this policy also includes retaliation against a student who refuses to participate in any manner in an investigation under Title IX. In the absence of a formal complaint, allegations of retaliation shall be investigated under Investigation of Reports Other Than Title IX, above.

Examples — Examples of retaliation may include threats, intimidation, coercion, rumor spreading, ostracism, assault, destruction of property, unjustified punishments, or unwarranted grade reductions. Unlawful retaliation does not include petty slights or annoyances.

False Claim — A student who intentionally makes a false claim or offers false statements in a District investigation regarding discrimination or harassment, including dating violence, shall be subject to appropriate disciplinary action in accordance with law.

Records Retention — The District shall retain copies of allegations, investigation reports, and related records regarding any prohibited conduct in accordance with the District's records control schedules, but for no less than the minimum amount of time required by law. [See CPC]

[For Title IX recordkeeping and retention provisions, see FFH(LEGAL) and the District's Title IX formal complaint process.]

Access to Policy and Procedures

Information regarding this policy and any accompanying procedures shall be distributed annually in the employee and student handbooks. Copies of the policy and procedures shall be posted on the District's website, to the extent practicable, and readily available at each campus and the District's administrative offices.